



An Autonomous Scientific Society under Ministry of Electronics & Information Technology (MeitY), Govt. of India

www.ernet.in

TENDER
For
Supply of Intelligent Educational ICT Infrastructure at
Eklavya Model Residential Schools (EMRSs)
Through Govt. e-Marketplace (GeM)

Tender No./xxxx

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Section I: Notice Inviting Tender (NIT)

ERNET India is an autonomous society of Ministry of Electronics and Information Technology (MeitY), Govt. of India mandated to facilitate education and research institutions of country in establishing smart ICT system. It invites proposals (hereinafter referred as the 'bid(s)') for entering into a Contract for **“Supply of Intelligent Educational ICT Infrastructure at Eklavya Model Residential Schools (EMRSs)”** through Govt. e-Marketplace (GeM).

1 The Tender

- 1.1. Bidders must read the complete 'Tender Document'. This NIT is an integral part of the Tender Document and serves a limited purpose of invitation. Bidders must go through the complete Tender Document for details before submission of their Bids.

- 1.2. **Pre-bid meeting and Clarifications**

As per the GeM bidding process, a pre-bid for the queries/clarifications on tender will be organized through Video Conferencing (VC) mode and physical mode. ERNET India may incorporate any changes in the Tender, based on acceptable suggestions received during the Pre-Bid meeting. The decision of the ERNET India regarding acceptability of any suggestion shall be final in this regard and shall not be called upon to question under any circumstances. Only two persons from each prospective bidder's organization can attend the pre-bid meeting. Please feel free to contact Sh. Anupam Srivastava, Additional Director, ERNET India (Email: anupam@ernet.in with copy marked to as@ernet.in) for any query related to pre-bid meeting and to get the VC link for attending the pre-bid meeting through VC mode. To attend the pre-bid meeting physically, prospective bidder's officials may come to ERNET India Office located at **Address “ 5th Floor, Block-I, A-Wing, DMRC IT Park, Shastri Park, Delhi- 110 053”** on date/time of pre-bid meeting.

The queries/clarifications on tender shall be submitted by the prospective bidders in writing on their letter head to ERNET India at the Email address as given below within 48 hours from the date / time of pre-bid meeting:

Email To: anupam@ernet.in ,
And cc to: as@ernet.in

Queries/ clarifications received to ERNET India at above mentioned Email IDs after its due date / time of will not be considered.

Response/reply to queries/clarifications received from the prospective bidders within time frame as stated above shall be uploaded at GeM portal. No reply in this regard shall be sent to individual bidder. The bidders are advised to keep visiting GeM portal to get the details in this regard, if any, before submission of their bids on the due date & time. ERNET India may, for any reason, whether at its own initiative or in response to a clarification requested by prospective bidders, modify the Tender document by an amendment/ corrigendum before due date of submission of Bids. The same will be posted on GeM portal. The bidder is required to read the tender document in conjunction with the amendment/

corrigendum, if any, issued by ERNET India on GeM portal. The tender with its all amendments / corrigendum issued before due date of submission of bids shall be considered as Tender document.

2 Eligibility and Qualification Criteria for Participation in this Tender

Subject to provisions in the Tender Document, participation in this Tender Process is open to all bidders who fulfil the 'Eligibility' and 'Qualification criteria' as provided in this tender.

3 Submission of Bids

1. Bids must be uploaded by Bidder on GeM portal till the deadline for submission mentioned on GeM Portal. Bidder must comply with the conditions of the GeM Portal.,
2. Bidder must submit the bid complete in all respect; in the absence of which bid may be rejected.

4 Purchase Preference Policies of the Government

i) Preference to Make in India

Preference to Make In India products (For bids < 200 Crore): Preference will be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the tender document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate.

Purchase preference to the qualified bidders for Make in India would be provided in line with Public Procurement (Preference to Make in India) Order 2017" (MII) of Department for Promotion of Industry and Internal Trade, (DPIIT - Public Procurement Section) as revised and amended from time to time including the Letter No. P-45021/2/2017-PP (BE-II). Dated 16th September, 2020 issued by Public Procurement Division, Department of Investment and Internal Trade, Ministry of Commerce, GoI as amended from time to time and F. No. W-43/4/2019-IPHW-MeitY 07/09/2020 issued by IPHW division of MeitY.

ii) Definition of Local Content and Categories of Local Suppliers

Bidders/Contractors are divided into three categories based on Local Content. Local content means the amount of value added in India which shall, unless otherwise prescribed by the Nodal Ministry, be the total value of the Item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.

- a) 'Class-I local Supplier' is a supplier with local content equal to or more than 50%.
- b) 'Class-II local Supplier' is a supplier with local content equal to or more than 20%, but less than that applicable for Class-I local Supplier.
- c) 'Non - Local Supplier' is a supplier with local content less than that applicable for Class-II local Supplier, in sub-clause above.
- d) The margin of purchase preference shall be 20%.

iii) Purchase preference to Micro and Small Enterprises (MSEs):

Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service.

If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded to qualified MSE Bidder as the work is not divisible in nature.

iv) Support/ Preferential Treatment to Micro & Small Enterprises (MSEs) and Start-up Enterprises

Policies of the Government to support Micro and Small Industries and startup in comparison to non-MSE enterprises shall apply to this procurement as indicated in Tender Document on GeM. Exemption to MSE and startups will be given only for the turnover and not for the experience. The clause mentioned in the General terms and conditions of GEM i.e. exemption to MSE and Startup will not be applicable for this tender only.

v) Other terms:

As detailed in the Tender Document, ERNET India reserves its right to grant preferences to eligible Bidders under various Government Policies/ directives (policies relating to Make in India (MII); MSME; Start-ups etc.). Under this tender,

procurement of items and services are not divisible in nature. Hence bids will be evaluated on total bid price and Class-I local supplier will get purchase preference over Class-II local supplier.

5 Bid Opening

Bids received shall be opened online at the specified date and time mentioned on GeM Portal.

6 Disclaimers and Rights of ERNET India

The issue of the Tender Document does not imply that ERNET India is bound to select bid(s), and it reserves the right, without assigning any reason, to:

- a) reject any or all of the Bids, or
- b) cancel the tender process at any stage; or
- c) abandon the procurement of Services; or
- d) issue another tender for identical or similar Services

Signed by
Tender Inviting Authority (TIA)
ERNET India

Section II: Instructions to Bidders (ITB)

1 ERNET India - Rights and Disclaimers

1.1 ERNET India

ERNET India is an autonomous society mandated to support the needs of the research and education community within the country. It was established in 1998 as an autonomous scientific society registered under the Societies Registration Act, 1860 and works under the administrative control of Ministry of Electronics and Information Technology (MeitY), Government of India. ERNET India operates terrestrial and satellite network and serving many institutions in various sectors, namely, health, agriculture, higher education, schools and science & technology.

Bids are to be addressed to the Registrar & CPO, ERNET India in the ERNET India. The Tender Inviting Authority or its representative is the designated officer for uploading and clarifying this Tender Document.

1.2 Right to Intellectual Property

The Tender Document and associated correspondence shall always remain the property of the ERNET India.

1.3 Right to Reject any or all Bids

The ERNET India reserves its right to accept or reject any or all Bids, abandon/ cancel the Tender process at any stage, and issue another tender for the same or similar service at any time before the award of the contract. It would incur no liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for such action(s).

1.4 Disclaimers

1.4.1 Regarding Purpose of the Tender Document

The Tender Document is neither an agreement nor an offer to prospective Bidder(s) or any other party hereunder. The purpose of the Tender Document is to provide the Bidder(s) with information to assist them in participation in this Tender Process.

1.4.2 Regarding Documents/ guidelines

The Tender Document, ensuing communications, and Contracts shall determine the legal and commercial relationship between the bidders/ contractors and the ERNET India.

1.4.3 Regarding Information Provided

Information contained in the Tender Document or subsequently provided to the Bidder(s) is on the terms and conditions set out in the Tender Document. Similar terms apply to information provided in documentary or any other form, directly or indirectly, by the ERNET India or any of its authorised employees or its associated agencies.

1.4.4 Regarding Tender Document

- a) The Tender Document does not purport to contain all the information Bidder(s) may require. It may not address the needs of all Bidders. They should conduct due diligence, and analysis, check the information's accuracy, reliability, and completeness, and may obtain independent advice from appropriate sources. Information provided in the Tender Document to the Bidder(s) is on a wide range of matters, some of which may depend upon interpreting the law. The information given is not intended to be an exhaustive account of statutory requirements and should not be regarded as a complete or authoritative statement of law. The ERNET India, its employees and other associated agencies accept no responsibility for the accuracy or otherwise for any interpretation or opinion on law expressed herein.
- b) The ERNET India, its employees and other associated agencies make no representation or warranty for the accuracy, adequacy, correctness, completeness or reliability, assessment, assumption, statement, or information in the Tender Document. They have no legal liability, whether resulting from negligence or otherwise, for any loss, damages, cost, or expense that may arise / incurred / suffered howsoever caused to any person, including any Bidder, on such account.

2 Bidders

Subject to provisions in the following clauses in this section and provisions in Tender Document, this invitation for Bids is open to all bidders who fulfill the 'Eligibility Criteria' and 'Qualification Criteria' stipulated in the Tender Document.

3 Bid Prices, Taxes and Duties

3.1 Bid Prices

3.1.1 Competitive and Independent Prices

- a. The prices should be arrived at independently, without restricting competition, any consultation, communication, or agreement with any other bidder or competitor relating to:
 - i) those prices; or
 - ii) the intention to submit an offer; or
 - iii) the methods or factors used to calculate the prices offered.
- b. The prices should neither knowingly nor unknowingly disclosed by the Bidder, directly or indirectly, to any other bidder or competitor before bid opening or contract award unless otherwise required by law.

3.1.2 Price Schedule

- a. Bidders are required to quote value of each line item on GeM portal in Financial Bid (BoQ-PS) uploaded by ERNET India. In case of any discrepancy between rates mentioned in figures and words, the latter shall prevail. In case of any arithmetic mistake committed by bidder in Financial bid (BoQ-PS), ERNET India reserves the right to correct the same by taking unit price quoted by the bidder and quantities specified in Tender by ERNET India.

- b. Bidders shall fill in their rates other than zero value. Bid will be liable to be rejected if bidder **has filled Rs. 0 (zero) for any line item.**
- c. The quoted unit price shall be considered to include all relevant financial implications.

3.1.3 Currencies of Bid and Payment

The currency of bid and payment shall only be Indian Rupees. All payments shall also be made in Indian Rupees only.

3.1.4 Non-compliance

Tenders, where prices are quoted in any other way, may be rejected as non-responsive.

3.2 Firm Price

Prices quoted by Bidder shall remain firm and fixed during the currency of the contract and there shall be no variation on higher side on any account.

3.3 Goods and Services Tax (GST)

1. Bidders should ensure that they are GST compliant. Bidder should be registered under GST and should furnish GSTIN and GST Registration Certificate in their bids.
2. Bidder/Contractor undertakes that in case of any non-compliance by the Bidder(s) of the GST provisions which results in blockage/reversal of any input tax credit to ERNET India, Bidder/Contractor shall be liable to indemnify the ERNET India any such loss of input credit including interest, penalty and all incidental expenses incurred by ERNET India. Such indemnification may also be by way of invocation of any security deposit, deduction from any payment that ERNET India has to make to the Bidder/Contractor, as per the discretion of the ERNET India.
3. Bidder/Contractor undertakes to raise invoice within 10 days from date when the right to raise invoice and demand for payment accrues as per the contract terms. In case invoice is raised and submitted before the due date; then ERNET India reserves the right to return such invoice(s) to the Bidder/Contractor. In such a situation Bidder/Contractor would be required to raise fresh invoice as per the contract terms.
4. If the Bidder/Contractor fails to adhere the terms & conditions of the contract and ERNET deducts Liquidated Damages and/or SLA penalties for the same; then in such a case, ERNET India will charge GST over and above the Liquidated Damages and/or SLA penalties, as the case may be; and same shall be recovered from the Bidder/Contractor. This may vary depending on the position of law on the date when such deduction is made.
5. Along with the invoice, Bidder/Contractor would be required to submit relevant documentary evidence to the effect that invoice submitted was issued either through e-Invoice system of GST or has been updated on GST portal using Invoice Furnishing Facility (IFF).

6. In case, any GST liability is required to be borne by ERNET India in future, which was the responsibility of the Bidder/Contractor, then the same shall be claimed from the Bidder/Contractor by way of raising debit notes.
7. ERNET India reserves the right to ask the Bidder/Contractor to submit relevant documents to ensure that they are GST compliant and in such a case Bidder/Contractor shall forthwith provide all such documents as may be required by ERNET India.

4 Preparation of Bids

4.1 The bid

4.1.1 Language of the bid

The bid submitted by Bidder and all subsequent correspondence and documents relating to the bid exchanged between Bidder and the ERNET India shall be written in English. However, the language of any printed literature furnished by Bidder in connection with its bid may be written in any other language provided a translation accompanies the same in the bid language. For purposes of interpretation of the bid, translation in the language of the bid shall prevail.

4.1.2 Local Conditions and Factors

Bidders shall themselves be responsible for compliance with Rules, Regulations, Laws and Acts in force from time to time at relevant places. On such matters, the ERNET India shall have no responsibility and shall not entertain any request from the bidders in these regards.

4.1.3 Cost of Bidding

The Bidder(s) shall bear all direct or consequential costs, losses and expenditure associated with or relating to the preparation, submission, and subsequent processing of their Bids, including but not limited to preparation, copying, postage, uploading, downloading, delivery fees, expenses associated with any submission of samples, demonstrations, or presentations which the ERNET India may require, or any other costs incurred in connection with or relating to their Bids. All such costs, losses and expenses shall remain with the Bidder(s), and the ERNET India shall not be liable in any manner whatsoever for the same or any other costs, losses and expenses incurred by a Bidder(s) for participation in the Tender Process, regardless of the conduct or outcome of the Tender Process.

4.1.4 Interpretation of Provisions of the Tender Document

The provisions in the Tender Document must be interpreted in the context in which these appear. Any interpretation of these provisions other than from such context or other contrived or in-between-the-lines interpretation is unacceptable.

4.1.5 Alternative Bids not allowed

Conditional offers, alternative offers, multiple bids by a bidder shall not be considered. The GeM Portal shall permit only one bid to be uploaded.

4.2 Documents comprising the bid

4.2.1 Technicalbid

"Technical Bid" shall include inter-alia the original or scanned copies of duly inked signed or digitally signed copies of the following documents in .pdf format. The .pdf documents should not be password protected. ***No price details should be given or hinted in the Technical bid. In case the bidder provides any price details in technical bid, their bid shall be liable to rejection.*** The indicative checklist for bidders is tabulated below:

	(To be submitted as part of Technical bid-on Company Letter-head) Bidder's Name _____ [Address and Contact Details] Bidder's Reference No. _____ Date..... Tender Document No. Tender No./ xxxx;	
S.No.	Documents submitted, duly filled, signed	Yes/ No/ NA
1.	Form 1 - Bid Form (to serve as covering letter and declarations applicable for both the Technical bid and Financial bid)	
2.	Form 2 - Bidder Information along with Board Resolution/Power of attorney of authorized signatories on stamp paper and Registration Certificates etc.	
2.a	Self-attested copy of Registration certificates etc. of the Bidding firm	
2.b	Self-attested copy of PAN	
2.c	Self-attested copy of GST registrationCertificate	
2.d	Self-attested copy of Power of Attorney, etc. authorizing signatories on stamp paper to sign the bid	
3.	Form 3 - Eligibility Declarations, along with supporting documents	
3.a	Self-attested copy of Registration certificate for bidders' subcontractors from restricted neighbouring countries, if any	
4.	Form 4 : Bill of Quantity – Compliance	
5.	Form 5 : Technical Specifications – Compliance	
6.	Relevant documents like technical data, literature, datasheets, drawings, and other relevant proposal/bid documents.	
7.	Form 6: Qualification Criteria – Compliance	
8.	Documents Attached supporting the compliance to qualification criteria of Bidder and its OEM	
9.	Form 7 - Experience Statement	
10.	Documents/ contracts supporting the experience statement	
11.	Form 8 - Terms and Condition compliance	
12.	Form 9 : Documents relating to Bid Security	
13.	Form 10 : Bank Guarantee	
14.	Form 11: Non-disclosure agreement	
15.	Form 12 : Integrity Pact	
(Signature with date) (Name and designation) Duly authorized to sign bid for and on behalf of..... [name & address of Bidder and seal of company]		

Dated.....

Place.....

Note to Bidders: This check-list is merely to help the bidders to prepare their bids, it does not over-ride or modify the requirement of the tender. Bidders must do their own due diligence also.

4.2.2 Financial bid

"Financial bid" shall comprise the Price Schedule considering all financially relevant details, including Taxes and Duties as per Financial Bid (BoQ-PS) Proforma.

4.3 Bid Validity

1. 'Bidding Duration' will be time duration for submission of bid/offer by the bidders on GeM (From Tender Publish date): 28 days.
2. 'Bid Offer Validity' (i.e. Bid Validity) (From End date/Technical Bid submission date): 110 Days.
3. The 'Bidding Duration' and 'Bid Offer Validity' date may be extended by ERNET India and same shall be acceptable to the bidder.

During the extended period of 'Bidding duration', the bidders may change / modify their offer/bid.

During the extended period of 'Bid Offer Validity' (i.e. within the permissible limits on the GeM), the bidder cannot change / modify their offer/ bid on their own.

4.4 Bid Security - Related Documents

1. All Bidders shall furnish/ upload a Bid Securing Declaration (BSD) as Form 9 along with its Technical bid. The BSD is required to protect the ERNET India against the risk of the Bidder's unwarranted conduct as amplified under the sub-clause below.
2. The BSD provides for automatic suspension of the Bidder from being eligible for bidding in any tender in ERNET India for 2 years from the date of such enforcement and this declaration shall stand enforced if Bidder breaches the following obligation(s) under the tender conditions:
 - (a) withdraws or amends his bid, or impairs or derogates from the bid in any respect within the period of validity of its bid; or
 - (b) after having been notified within the period of bid validity of the acceptance of his bid by the ERNET India, bidder refuses to or fails to submit the original documents for scrutiny and/or the required Performance Security within the stipulated time as per the conditions of the Tender Document;
3. Unsuccessful Bidders' bid-Securing Declaration shall expire, if the contract is not awarded to them, upon:

- a) receipt by Bidder of the ERNET India's notification of cancellation of the entire tender process or rejection of all bids or
 - b) declaration/publishing of the name of the successful bidder or
 - c) forty-five(45) days after the expiration of the bid validity (including any extension thereof).
4. The bid-Securing Declaration of the successful bidder shall stand expired only when Bidder has furnished the required Performance Security.

4.5 Non-compliance with these provisions

Bids are liable to be rejected as non-responsive if a Bidder:

- a. fails to provide and/ or comply with the required information, instructions etc., incorporated in the Tender Document or gives evasive information/ reply against any such stipulations.
- b. furnishes wrong and/ or misleading data, statement(s) etc. In such a situation, besides rejection of the bid as non-responsive, ERNET India will also enforce Bid Security Declaration.

5 Bid Opening

The date & time of the opening bid is as stipulated on GeM Portal.

6 Evaluation of Bids and Award of Contract

6.1 General norms

6.1.1 Evaluation based only on declared criteria

The evaluation shall be based upon scrutiny and examination of all relevant data and details submitted by Bidder in its bid and other allied information deemed appropriate by ERNET India. Evaluation of bids shall be based only on the criteria/ conditions included in the Tender Document.

6.1.2 Minor Infirmary

- a. In case of any minor infirmity in the bid document, the decision of the ERNET India shall be final in this regard.
- b. Wherever necessary, ERNET India shall convey its observation to Bidder through GeM portal by asking Bidder to respond by a specified date. If Bidder does not reply by the specified date or gives an evasive reply without clarifying the point at issue in clear terms, that bid shall be liable to be rejected as non-responsive.

6.1.3 Clarification of Bids and shortfall documents

- a. During the evaluation of Technical or Financial Bids, ERNET India may, at its discretion, but without any obligation to do so, ask Bidder to clarify its bid within 5 days. The request for clarification shall be submitted on GeM Portal, and no change in prices or substance of the bid shall be sought, offered, or permitted that may grant any undue advantage to such bidder.
- b. ERNET India may ask original documents of uploaded scanned copies. If any substantive discrepancy is found between original and scanned uploaded copies, then the bid shall be liable to be rejected as non-responsive and ERNET India may enforce Bid Security declaration.
- c. The ERNET India reserves its right to, but without any obligation to do so, seek any information/ documents to meet the shortfall/ inadequacy in the information/ document submitted by the bidder. For this, there is a provision on the portal for requesting such documents from the bidders and the system allows taking such documents from any bidders as per GeM procedure after the technical bid opening.

6.1.4 Contacting ERNET India during the evaluation

Any effort by a Bidder to influence ERNET India, during the processing of bids, evaluation, bid comparison or award of decisions, shall be construed as a violation and bid shall be liable to be rejected as non-responsive in addition to enforcement of Bid Security declaration.

6.2 Evaluation of Bids

This Tender Process comprises of two Bid systems i.e. Technical Bid and Financial Bid.

Initially, only the Technical Bids shall be opened on the stipulated date of opening of bids.

After that, the Technical Bids' evaluation shall be done to ascertain whether and how many bids are meeting the eligibility, qualification criteria and Technical aspects.

Opening of Financial Bids and their evaluation will be done in respect of only those bids whose technical bid are declared successful after the evaluation process.

6.3 Technical Evaluation

Only substantively responsive (meeting eligibility & qualification criteria as mentioned in Section-VI of this tender document) bids shall be further evaluated for technical evaluation. In evaluating the technical bid, conformity to the eligibility and qualification criteria, technical specifications of the offered Service and Services in comparison to those specified in the Tender Document will be ascertained. Additional factors incorporated in the Tender Documents shall also be considered in the manner indicated there-in. Bids with deviations shall be rejected as non-responsive. ERNET India reserves its right to consider and allow minor infirmity in technical Conditions as per ITB-clause 7.1.2.

6.3.1 Evaluation of eligibility & qualification criteria

ERNET India shall determine, to its satisfaction, whether the Bidders are eligible as per NIT to participate in the Tender Process as per submission in the checklist submission. Bids that do not meet the required eligibility criteria prescribed shall be rejected as non-responsive.

6.3.2 Evaluation of Conformity to Bill of Quantity and Technical Specifications and other parameters specified in Tender document

Technical Evaluation Committee (TEC) will shortlist Technical Bids on the basis of technical solution, conformity of technical specifications, parameters, features offered vis-à-vis tendered specifications requirements, etc. If required, the short listed bidders may be asked for a detailed technical presentation, discussion on the solution and items offered in the bid. Further, TEC may ask the bidder to bring any selected items, sub items of their quoted items for technical evaluation at ERNET India or any other location decided by TEC in specified time limit. In case, bidder fails to bring their quoted items within the stipulated time, for whatever reasons, their bid will not be considered for further evaluation. It is bidder's responsibility to showcase the desired parameters quoted in the bid by bidder. To do this, if bidder has to bring different tools, it will be the responsibility of the bidder to arrange them at no cost to ERNET India.

6.3.3 Declaration of Technically Successful Bidders and Opening of their Financial Bids

Bids that succeed in the above technical evaluation shall be considered for financial evaluation. The list of such technically successful bidders and the date and time for the opening of their financial bids shall be declared on the GeM Portal.

6.4 Evaluation of Financial Bids

- a. Evaluation of the financial bids shall be done on the price criteria only. Financial Bids of all technically qualified bids will be evaluated and an e-Reverse Auction (e-RA) process will be conducted on GeM portal to determine the lowest cost (L-1) bidder.
- b. The Reverse Auction (e-RA) process will be governed as per GeM Portal and its procedures.
- c. The comparison of the responsive Bids shall be done on Total bid price (including GST with referencing to Section V) of all the items and Service(s) quoted by the bidder in the price bid.
- d. In line with the policies of the Government of India, as amended from time to time, the ERNET India reserves the right to give purchase preferences to eligible categories of Bidders as indicated in the Tender Document.
- e. **Price Negotiation:** ERNET India reserves its right to negotiate with the lowest acceptable bidder (L-1) after e Reverse Auction (e-RA) process, which is declared techno-commercially successful for supplying items and services on whom the contract would have been placed.
- f. Bidders must submit Price Break up {(Financial Bid(BoQ-PS))} sheet during Bid submission process, eRA and after negotiation {(Financial Bid(BoQ-PS))}. If same is not possible through GEM portal, then bidder shall submit the same on the email IDs as given in the NIT.

- g. During e-RA and Price negotiation bidder cannot quote item wise prices towards higher side in comparison to previously quoted item wise prices. Failure to do so will make bid liable for rejection.

7 Award of Contract

7.1 ERNET India's Rights:

i) Right to Vary Quantities

ERNET India/ the Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25% of bid quantity at the time of placement of contract/ purchase order (s). The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

ii) The successful bidder / Contractor shall sign the Non-Disclosure Agreement as:

- a. The Successful Bidder/Contractor shall sign a Non-Disclosure Agreement (NDA) with ERNET India as per Form11 and submit the same within 15 days from the date of issue of contract.
- b. The successful bidder shall also sign a Non-Disclosure Agreement with employees who are deployed in this project during implementation and operations.
- c. The Successful Bidder/Contractor shall ensure that all persons, employees, workers and other individuals engaged by Bidder in rendering the Services under this Agreement have undergone proper background check, police verification and other necessary due diligence checks to examine their antecedence and ensure their suitability for such engagement. No person shall be engaged by the Bidder unless such person is found to be suitable in such verification and Bidder shall retain the records of such verification and shall produce the same to ERNET India as when requested by ERNET India. It may also, if required, go for verification of manpower of contractor engaged for this project from government agencies.

7.2 Issuance of Contract

7.2.1 Selection of Successful Bidder

The ERNET India may award the contract to the Bidder whose bid is successful and declared L-1 after evaluation process, if its final price is found to be reasonable, as per evaluation criteria detailed in the Tender Document. ERNET reserves the right to reject any bidder without citing any reason. The decision of ERNET authorities shall be deemed final.

7.2.2 Performance Security

Within 15 days of issuance of contract through GeM Portal, performance Security shall be submitted by the successful bidder to the ERNET India and if it fails to do so within the specified period, it shall be lawful for the ERNET India, at its discretion, to annul the award and enforce Bid Securing Declaration.

7.2.3 Publication of Tender Result

The name and address of the successful Bidder receiving the contract shall be published in the GeMPortal.

8 Integrity Pact:

The bidder must comply with the Integrity Pact (IP) as a preliminary qualification and sign the Integrity Pact (IP) form (**Form12**).

Section III:General Conditions of Contract(GCC)

1. General

1.1 Tenets of Interpretation

Unless where the context requires otherwise, throughout the contract:

- a. The heading of these conditions shall not affect the interpretation or construction thereof.
- b. Writing or written includes matter either whole or in part, in digital communications, manuscript, typewritten, lithographed, cyclostyled, photographed, or printed under or over signature or seal or digitally acceptable authentication, as the case may be.
- c. Words in the singular include the plural and vice-versa.
- d. Words importing the masculine gender shall be taken to include other genders, and words importing persons shall include any company or association or body of individuals, whether incorporated or not.
- e. Any reference to 'Item' and 'Service' shall be deemed to include the complete work i.e. installation, testing, training, commissioning, acceptance, operation and maintenance.
- f. Any reference to 'Contract' shall be deemed to include all other documents as described in GCC-Clause 2.4.
- g. Any reference to any Act, Government Policies or orders shall be deemed to include all amendments to such instruments, from time to time.

1.2 Definitions

In the contract, unless the context otherwise requires:

1. "bid" (including the term 'tender', 'offer', 'quotation' or 'proposal' in specific contexts) means an offer to supply items, services or execution of works made as per the terms and conditions set out in a document inviting such offers.
2. "Bidder" (including the term 'Bidder', 'Successful Bidder', 'Contractor', 'System Integrator', 'Service provider' in specific contexts) means any person or company, every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a Tender Process.
3. "Bill of Quantities" (including the term Financial Bid(BOQ-PS)) means the financial sheet and complete Bill of Quantities forming part of the bid.
4. "Commercial Bank" means a bank, defined as a scheduled bank under section 2(e) of the Reserve Bank of India Act, 1934.
5. "Contract" means and includes 'Contract issued from GeM Portal', 'Purchase Order', 'Supply Order', 'Withdrawal Order', 'Work Order', 'Agreement', 'Repeat order' accepted, acted upon by the contractor or any amendment thereof, a 'formal agreement', under specific contexts.

6. "Bidder, Contractor, Successful Bidder" (including the terms 'Supplier', 'Service Provider', 'System Integrator', 'Firm' 'Vendor', 'Bidder' under specific contexts) means the person, firm, company, with whom the contract is entered into and shall be deemed to include the contractor's successors (which is/are approved by the ERNET India), representatives, heirs, executors, and administrators as the case may be unless excluded by the terms of the contract.
7. "Day", "Month", "Year" shall mean calendar day, month, and year (unless reference to financial year is clear from the context).
8. "General Conditions" means the General Conditions of Contract, also referred to as GCC.
9. "Service"/ "Services" (including the terms items, service, Services in specific contexts): Any reference to item, service shall be deemed to include specific services that are Installation, Commissioning, Training, Testing, Acceptance and Maintenance etc.
10. "Government" means the Central Government or a State Government as the case may be and includes Autonomous Bodies, agencies and Public Sector Enterprises under it, in specific contexts.
11. "Inspection" means activities such as measuring, examining, testing, analyzing, gauging one or more characteristics of the Service or services or works, and comparing the same with the specified requirement to determine conformity.
12. "Parties": The parties to the contract are the "Contractor" and the ERNET India, as defined in this clause.
13. "Performance Security" (includes the terms 'Security Deposit' or 'Performance Bond' or 'Performance Bank Guarantee' or other specified financial instruments in specific contexts) means a monetary guarantee to be furnished by the successful Bidder or Contractor in the form prescribed for the due performance of the contract.
14. "Procurement" (or 'Purchase', or 'Government Procurement/ Purchase') means the acquisition of Service/ Services/ works by way of purchase, either using public funds or any other source of funds (e.g. grant etc.) of Service, works or services or any combination thereof, by ERNET India. The term "procure"/ "procured" or "purchase"/ "purchased" shall be construed accordingly.
15. "Procurement Officer" means the officer dealing the project, issuing the Tender Document, Purchase order from GeM and/or signing the contract etc. on behalf of the ERNET India.
16. "Specification", "Technical Specification" means the drawing, document, standard, Datasheets or any other details governing the supply of Service, performance of services that prescribes the requirement to which Service(s) have to conform as per the contract.
17. "Signed" means ink signed or digitally signed with a valid Digital Signature as per IT Act 2000 (as amended from time to time). It also includes stamped, except in the case of Letter of Award or amendment thereof.
18. "Tender/ "Tender Document"/ "Tender Enquiry" or "Tender Process": 'Tender Process' is the whole process from the publishing of the Tender Document till the resultant award of the contract. 'Tender Document' means the document (including all

its sections, appendices, forms, formats, etc.) published by the ERNET India on GeM Portal to invite bids in a Tender Process. The Tender Document and Tender Process may be generically referred to as "Tender" or "Tender Enquiry", which would be clear from context without ambiguity.

19. "Tender No./xxxx" refers to the GeM Bid Number, Bidders should add this number same as GeM Bid Number in all documentation pertaining to this tender.
20. "GeM Portal"; (includes e procurement) Government e Marketplace website on which this tender will be hosted and other tender related activities will be performed.

2 The Contract

2.1 Language of Contract

The contract shall be written in the Official Language or English. All correspondence and other contract documents, which the parties exchange, shall also be written/ translated accordingly in that language. For purposes of interpretation of the contract, the English documents/ translation shall prevail.

2.2 The Entire Agreement

The Contract to be issued on GeM portal and its related documents constitutes the entire agreement between the ERNET India and the contractor.

2.3 Severability

If any provision or condition of this Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of any other provisions and conditions of this Contract.

2.4 Contract Documents

The following conditions and documents shall be considered to be an integral part of the contract, irrespective of whether these are appended/ referred to in it. Any generic reference to 'Contract' shall imply reference to all these documents as well:

- a. Contract issued on GeM Portal.
- b. Valid and authorized Amendments issued to the contract.
- c. Final written submissions made by the contractor during negotiations, if any.
- d. GeM(GTCi.e General Terms and Conditions)
- e. GeM (STCi.e Special Terms & Conditions & ATCi.e Additional Terms & Conditions) if any
- f. The contractor's bid;
- g. Forms and Formats signed and submitted by bidder
- h. Integrity Pact
- i. Non-Disclosure Agreement (NDA)
- j. Modifications/ Amendments, Waivers and Forbearances
- k. Tender Document and its amendment/Corrigendum

2.4.1 Modifications/ Amendments of Contract

- a. If any of the contract provisions must be modified after the contract is issued, the modifications shall be made in writing and signed by the ERNET India, and no modified provisions shall be applicable unless such modifications have been done. No variation in or modification of the contract terms shall be made except by a written amendment signed by the ERNET India. Requests for changes and modifications may be submitted in writing by the contractor to the ERNET India. At any time during the currency of the contract, the ERNET India may suo-moto or, on request from the contractor, by written order, amend the contract by making alterations and modifications within the general scope of the Contract.
- b. If the contractor does not agree to the suo-moto modifications/amendments made by the ERNET India, he shall convey his views within 10 days from the date of amendment/modification conveyed. Otherwise, it shall be assumed that the contractor has consented to the amendment.
- c. Any verbal or written arrangement abandoning, modifying, extending, reducing, or supplementing the contract or any of the terms thereof shall be deemed conditional and shall not be binding on the ERNET India unless and until the same is incorporated in a formal instrument and signed by the ERNET India, and till then the ERNET India shall have the right to repudiate such arrangements.

2.4.2 Waivers and Forbearances

The following shall apply concerning any waivers, forbearance, or similar action taken under this Contract:

- a. Any waiver of ERNET India's rights, powers, or remedies under this Contract must be in writing, dated, and signed by an authorized representative of the ERNET India granting such waiver and must specify the terms under which the waiver is being granted.
- b. No relaxation, forbearance, delay, or indulgence by ERNET India in enforcing any of the terms and conditions of this Contract or granting of an extension of time by ERNET India to the contractor shall, in any way whatsoever, prejudice, affect, or restrict the rights of ERNET India under this Contract, neither shall any waiver by ERNET India of any breach of Contract operate as a waiver of any subsequent or continuing breach of Contract.

3 Governing Laws and Jurisdiction

- 3.1. This Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Laws of India for the time being in force.

3.2. Irrespective of the place of delivery, or the place of performance or the place of payments under the contract, the contract shall be deemed to have been made at the place from which the Contract/Purchase Order or the contract Agreement has been issued. The courts of such a place (i.e. New Delhi) shall alone have jurisdiction to decide any dispute arising out or in respect of the contract.

4 Contractor's Obligations and restrictions on its Rights

4.1 Changes in Constitution/ financial stakes/ responsibilities of a Contractor's Business

The Contractor must proactively keep the ERNET India informed of any changes in its constitution/ financial stakes/ responsibilities during the execution of the contract.

4.2 Obligation to Maintain Eligibility and Qualifications

The contract has been awarded to the contractor based on specific eligibility and qualification criteria. The Contractor is contractually bound to maintain such eligibility and qualifications during the execution of the contract. Any change which would vitiate the basis on which the contract was awarded to the contractor, should be pro-actively brought to the notice of the ERNET India within 10 days of it coming to the Contractor's knowledge. These changes include but are not restricted to the Change regarding declarations made by it in its bid in Form 3: Eligibility Declaration.

4.3 Consequences of a breach of Obligations

Should the contractor commit a default or breach of GCC-clause 4.1 to 4.7, the Contractor shall remedy such breaches within 21 days, keeping ERNET India informed. However, at its discretion, ERNET India shall be entitled, and it shall be lawful on its part, to treat it as a breach of contract and avail any or all remedies thereunder. The decision of the ERNET India as to any matter or thing concerning or arising out of GCC-clause 4.1 to 4.7 or on any question whether the contractor or any partner of the contractor firm has committed a default or breach of any of the conditions shall be final and binding on the contractor.

4.4 Assignment and Sub-contracting

- a. the contractor shall not sublet, transfer, or assign the contract or any part thereof or interest therein or benefit or advantage thereof in any manner whatsoever.
- b. the contractor shall take prior permission in writing from ERNET India for any sub-contracting that contractor wish to enter into for limited Works.
- c. If the Contractor sublets or assigns this contract or any part thereof without such permission, the ERNET India shall be entitled, and it shall be lawful on its part, to treat it as a breach of contract and avail any or all remedies thereunder.

4.5 Indemnities for breach of IPR Rights or from other issues

- a. the contractor shall indemnify and hold harmless, free of costs, the ERNET India and its employees and officers from and against all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature,

including attorney's fees and expenses, which may arise in respect of the services provided by the contractor.

- b. If any proceedings are brought, or any claim is made against the ERNET India arising out of the matters referred above, the ERNET India shall promptly give the contractor a notice thereof. The contractor may conduct, at its own expense and in ERNET India's name, such proceedings and negotiations to settle any such proceedings or claim, keeping ERNET India informed.
- c. If the contractor fails to notify the ERNET India within 30 days after receiving such notice that it intends to conduct any such proceedings or claim, then the ERNET India shall be free to conduct the same on its behalf at the risk and cost to the contractor.
- d. At the contractor's request, the ERNET India shall afford all available assistance to the contractor in conducting such proceedings or claim and shall be reimbursed by the contractor for all reasonable expenses incurred in doing so.
- e. The Contractor shall be solely responsible for any damage, loss or injury which may occur to any property or to any person by or arising out the execution of the works or temporary works or in carrying out of the contract otherwise than due to the matters referred to in this agreement hereinbefore. The contractor would ensure for observance of all labour and other laws applicable in the matter and shall indemnify and keep indemnified the ERNET India, end users/ its customers against the effect of non-observance of any such laws.

4.6 Confidentiality and IPR Rights

4.6.1 IPR Rights

All deliverables, outputs, plans, drawings, specifications, designs, reports, and other documents and software submitted by the contractor under this Contract shall become and remain the property of the ERNET India and must not be shared with third parties or reproduced, whether in whole or part, without the ERNET India's prior written consent. The contractor shall, not later than upon termination or expiration of this Contract, deliver all such documents and software to the ERNET India, together with a detailed inventory thereof.

4.6.2 Confidentiality

All documents, drawings, samples, data, associated correspondence or other information furnished by or on behalf of the ERNET India to the contractor, in connection with the contract, whether such information has been furnished before, during or following completion or termination of the contract, are confidential and shall remain the property of the ERNET India and without the prior written consent of ERNET India, shall neither be divulged by the contractor to any third party, nor be used by him for any purpose other than the design, procurement, or other services and work required for the performance of this Contract. If advised by the ERNET India, all copies of all such information in original shall be returned to

ERNET India on completion of the contractor's performance and obligations under this contract.

4.6.3 Obligations of the contractor

1. Without the ERNET India's prior written consent, the contractor shall not use the information mentioned above, except for the sole purpose of performing this contract.
2. The contractor shall treat and mark all information as confidential and shall not, without the written consent of the ERNET India, divulge to any person other than the person(s) employed by the contractor in the performance of the contract. Further, any such disclosure to any such employed person shall be made in confidence and only so far as necessary for such performance for this contract.
3. Notwithstanding the above, the contractor may furnish to its holding company such documents, data, and other information it receives from the ERNET India to the extent required for performing the contract. In this event, the contractor shall obtain from such holding company an undertaking of confidentiality similar to that imposed on the contractor under the above clauses.
4. The obligation of the contractor under sub-clauses above, however, shall not apply to information that:
 - a) now or hereafter is or enters the public domain through no fault of Contractor;
 - b) can be proven to have been possessed by the contractor at the time of disclosure and which was not previously obtained, directly or indirectly, from the ERNET India ; or
 - c) otherwise lawfully becomes available to the contractor from a third party that has no obligation of confidentiality.
5. The above provisions shall not, in any way, modify any undertaking of confidentiality given by the contractor before the date of the contract, in respect of the contract/ the Tender Document or any part thereof.
6. The provisions of this clause shall survive completion or termination for whatever reason of the contract.

4.7 Performance Bond/ Security

1. The successful bidder shall submit a Performance Security of 3% of the total value of purchase order (s) at every occasion within 15 days from the date of placement of purchase order. The Performance Security may be submitted in any one of the forms specified below. In case of Bank Guarantee; the Bank Guarantee should be valid for the minimum period of its service liability (i.e. delivery period + warranty period) + 3 months of claim period. In case supplier fails to deliver the items and services within delivery/ installation/warranty period, the Performance Security submitted by the firm is liable to be forfeited. Performance Security shall be released after satisfactory completion of

warranty. No interest will be payable by ERNET India on the any Security deposit submitted by the bidder/vender and/or retained/forfeited by ERNET India.

- a. Manner of submission of Performance Security: Insurance Surety Bonds/ Account Payee Demand Draft/ Security Deposit Fixed Deposit Receipt from a Scheduled Commercial Bank/ Bank Guarantee from a Scheduled Commercial Bank or online Payment (Account details given below).

1.	Beneficiary Name & Address	ERNET India, 5th Floor, Block I A Wing, DMRC IT Park, Shastri Park, Delhi-110053
2.	Bank Name	Bank of India
3	Bank Branch & Address	Electronics Niketan 6 CGO complex New Delhi
4	Beneficiary Account No	604810100002033
5	IFSC code	BKID0006048

The performance security in the form of Bank Guarantee must be routed through Structured Financial Messaging System (SFMS) from issuing Bank to our Bank as given above by sending IFN 760 COV Bank Guarantee Advice Message.

- b. Bank Guarantee should be issued by a scheduled commercial bank in India in the prescribed form & format as given in Tender.
 - c. Security deposit having fixed validity will be required to be further extended by the bidder to cover full work, service liability period. In case the contractor fails to do so in a timely manner; then ERNET India reserves the right to invoke the BG.
2. If the contractor, having been called upon by the ERNET India to furnish Performance Security, fails to do so within the specified period, it shall be lawful for the ERNET India at its discretion to annul the award and enforce Bid Securing Declaration (in lieu of forfeiture of the Bid Security), besides taking any other administrative punitive action.
 - a. If the contractor during the currency of the Contract fails to maintain the requisite Performance Security, it shall be lawful for the ERNET India at its discretion to terminate the Contract for Default besides availing any or all contractual remedies provided for breaches/ default, or
 - b. without terminating the Contract:

recover from the contractor the amount of such security deposit by deducting the amount from the pending bills of the contractor under the contract, any other contract with the ERNET India, treat it as a breach of contract and avail any or all contractual remedies provided for breaches, default.
 3. Contractor needs to extend the validity of Performance Security as and when asked by ERNET India due to Extension of project timelines or if any other valid reason.

4. In the event of any amendment issued to the contract, the contractor shall furnish suitably amended value and validity of the Performance Security in terms of the amended contract within fifteen days of issue of the amendment.
5. The ERNET India shall be entitled, and it shall be lawful on his part, to invoke the performance securities in the event of:

any default, failure, neglect on the part of the contractor in the fulfilment or performance in all respect of the contract under reference or any other contract with ERNET India or any part thereof for any loss or damage recoverable from the contractor which the ERNET India may suffer or be put to for reasons of or due to above defaults, failures, neglect.
6. Subject to the sub-clause above, the ERNET India shall release the performance security without any interest to the contractor on completing all contractual obligations at the satisfaction of ERNET India, including the warranty obligations.
7. No interest will be payable by ERNET India on any security deposit, amount forfeited, liquidated damages, SLA penalty, amount withheld any delayed payment by ERNET India.

4.8 Permits, Approvals and Licenses

The contractor obtains permits, approvals, licenses, etc. from local public authorities, etc, it shall be the contractor's sole responsibility to obtain these and keep these current and valid for execution of work successfully.

Section IV: Scope of work

A. Background:

The Ministry of Tribal Affairs (MoTA) has been setting up Eklavya Model Residential Schools (EMRS) all over India for imparting education to tribal children in their own environment. The purpose of EMRS is to impart quality education to the children in remote areas in order to educate them to avail the opportunities in high and professional educational courses and get employment in various sectors. The school focuses not only on academic education but on the all-round development of the students. Each school has a capacity of around 480 students, catering to students from Class VI to XII. These schools are residential schools.

Under this project, eight smart digital classes are to be setup in each EMRS. The purpose of the project is to create a complete digital ECO system for education which will enhance the learning and productivity of students by deploying the intelligent educational infrastructure, i.e. digital smart classes. The project will improve learning and teaching outcomes to students and teachers. The teachers can make use of the Internet by giving students extra resources and material from Internet, such as interactive lessons, etc. Students can easily access quality education material free for quality study materials available through Internet. Interactive environment through digital smart classes favours better learning and increase the efficiency. The well-established smart classrooms aims at developing the students learning ability as the entire chapters become more interesting to study and hence improve the results of the students. The advanced learning using digital smart classes is the new generation educational product which helps students gain more marks and is a step to the future of education. E-learning is a revolutionary product in the field of education.

Earlier, ERNET India has successfully executed similar work at 48 EMRSs spread all over the country.

B) The successful bidder shall be responsible for following:

1. The detailed Bill of Quantity to be supplied by the bidder at 160 EMRS sites (Eklavya Model Residential Schools) is tabulated below:

Sr.	Item description	Number of EMRSs	Qty. per EMRS	Total Qty.	Units of Qty
(A)	(B)	(C)	(D)	(E) =(C x D)	F
1	Digital Interactive Board (DIB)	160	8	1,280	Nos.
2	UPS	160	8	1,280	Nos.
3	Access Point(AP)	160	4	640	Nos.
4	Electrical Work(EW)	160	1	160	Set
5	Passive Work for integration of Internet & Intranet connectivity for items (PW)	160	1	160	Set
6	Field Engineer (FE)	160	1	160	3 Months

The bill of quantity to be supplied at each EMRS site is also mentioned in above table. The procured quantity and number of EMRS sites may vary as per clause 7.1 (i) of Section II (Instructions to Bidders). However, initially the Purchase Order may be placed for 127 EMRS sites and tentative list of these 127 EMRS sites is given in the subsequent clause of this section. The name, location, address of EMRS sites as given in the tentative list may also change.

2. At each EMRS, Internet connectivity will be established by BSNL. For establishing internet connectivity at all EMRS sites, ERNET India will issue its Work Order/ Purchase Order on BSNL, based on the Demand Note Issued by BSNL to ERNET India. The payment for establishing Internet connectivity at all EMRS sites will be made by ERNET India directly to BSNL. For information to the bidder, ERNET India has received Demand Note from BSNL for establishing Internet Leased Line (ILL) type of Internet connectivity for 127 EMRS sites (as per the tentative list enclosed in this section). However, Purchase/Work Order on BSNL will be issued by ERNET India after issuance of Purchase Order / Contract for EMRS sites on the successful bidder by ERNET India.

Successful bidder shall coordinate, liaison, etc. with BSNL for issuance of fresh Demand Note/ New Demand Note / Demand Note (if required), etc up to the establishment of Internet connectivity at EMRS sites. In this task, ERNET India will help successful bidder and may write letters, emails, etc to the BSNL as per the advice of successful bidder. In case of any specific delay from BSNL in establishing Internet connectivity at EMRS site (s), the same shall be informed by bidder to ERNET India for not counting this delay on the part of bidder and the decision of ERNET India shall be final in this delay on justified reasons submitted by the bidder.

3. Work at Each EMRS site:

The bidder shall setup eight (8) Smart Classes in each EMRS using the above mentioned/ tabulated Bill of Quantity. Each smart class shall have one Digital Interactive Board (DIB) and one UPS. The four Access Points (APs), one set of Electrical Work (EW) and one set of “Passive Work for integration of Internet & Intranet connectivity for items (PW)” shall be so supplied at each EMRS so as to ensure good functionality of the smart classes. The technical specifications pertaining to DIB, UPS, AP, EW and PN are mentioned in the subsequent clauses of this section.

The successful bidder shall supply all items (i.e. delivery, installation, commissioning, integration, etc of all items) for the full functionality of all supplied altogether and smart classes at EMRS site (s). The power to the DIB shall be provided through supplied UPS for power backup. The integration of ‘Internet connectivity established by BSNL’ with supplied Access Points and Digital Interactive Boards shall be done by the bidder. The bidder shall ensure smooth functionality of Internet & Intranet connectivity on all supplied Digital Interactive Boards and in the smart classes using Access Points.

At the time of installation/commissioning/acceptance of supplied items, two days on-site training on the basic operations and use of supplied items (mainly DIB and AP) shall be provided by the bidder to the teachers / officials of EMRS (around 10 teachers/ officials per EMRS). The bidder shall provide at least 10 copies of training materials & User manual for the training in each EMRS. The training material may be provided during this two days on-site training to the officials of EMRS site.

After successful supply of all items, good functioning of all eight smart classes with Internet/Intranet and acceptance of supplied items by EMRS site user & ERNET India; the bidder shall deploy/ depute one Field Engineer at each EMRS site for a period of three months. The qualification, experience, work responsibility of Field Engineer is mentioned in the subsequent clause of this section. The bidder shall ensure that field engineer shall also provide at least 5 days hands-on training on the handholding, operations, maintenance, configuration, use of supplied items, call/complaint lodging mechanism on the bidder (in case of any defect, problem in the functioning of supplied items), network diagram, etc.

The schedule of the training shall be prepared and finalised by the bidder in discussion with ERNET India and EMRS site. The bidder shall submit a training report after training to ERNET India. The one copy of training material shall be provided to ERNET India HQ.

For the acceptance of all supplied items, the 'Delivery, installation, commissioning, integration and acceptance certificate' duly signed by the authorised official of EMRS site shall be submitted by the bidder to ERNET India. The format of certificate shall be provided by ERNET India which shall include work details done by the bidder.

4. The EMRSs/ sites are located across India. However, this list and address may vary. The actual list of all EMRS sites will be provided by ERNET India at the time of issue of Purchase Order / Contract to the bidder.
5. On completion of the work, the bidder shall submit the detailed diagram/drawings & documentation of the project to the each EMRS user and ERNET India.
6. The bidder will ensure the availability of services from professionally qualified team during implementation of the contract/ work order. The bidder shall deliver and implement the system integration in conjunction with a set of best practices guidelines & industry standards for supply of all infrastructures.
7. The bidder shall make all efforts for smooth integration of the offered & supplied items and software with any existing items /network at each EMRS site.
8. The bidder(s) shall perform the work of items tagging at all EMRS sites for the purpose of their warranty and AMC servicing purpose. Tags shall include details like items Sr. No., Warranty start date, warranty end date, contact details (phone numbers and email ID) for logging-in the complaints, complaint escalation matrix, email id of the ERNET India project division.
9. The methodology of installation work, to be adopted, has to ensure no damage to the existing finish and no loss to the aesthetic beauty of the floors & walls. Any damage to the existing flooring, walls etc. shall be made good by the bidder.
10. The bidder will be liable for any software maintenance/patch updates/bug fixing without any extra cost during warranty period. Also, the bidder(s) will be responsible for on-site repair, replacement of faulty item, system, sub-system during the warranty period.

11. For installation of each and every items mentioned in the tender document, all the necessary accessories e.g. software, mounting kit, wiring, power cabling, socket, cable, switch, connectors etc. shall be under the scope of the work of this tender.
12. In case EMRS site is not ready for installation, commissioning, etc. of quoted items, the same shall be informed to ERNET India within two weeks from the date of Purchase Order / Contract by specifying the reasons in detail.
13. The bidder shall provide details of their helpdesk to each EMRS user for operations and maintenance and complaint purpose.

14. Delivery Schedule

Sr.	Delivery Schedule	Time Period
1	Delivery, installation, integration and commissioning of all supplied items at EMRS site (s) with 2 days on-site training, as per the tender.	Within 12 weeks from the date of placement of respective purchase order(s)/ contract.
2	Field Engineer at EMRS site (s)	Within two week after acceptance of all the supplied items with Internet connectivity in discussion with EMRS site (s) and ERNET India.

In case field engineers are not deputed within time for the specified period and / or did not complete their work / role satisfactory, then other liable payments may be kept on hold.

15. Service Level Agreement (SLA)

- a. As part of service level commitments, the successful bidder has to manage a help desk operations support with email id and toll free telephone number/ helpline number. It should work from Monday to Saturday from 9 a.m. to 5 p.m.
- b. Bidder has to provide a unique complaint number to keep & track the complaints received via Phone, Email etc.
- c. The bidder shall be responsible for the uptime (i.e. good functionality) of all the supplied items collectively at each EMRS site for at least 98% uptime during warranty period.
- d. The permissible downtime (i.e. non-functionality) of any item at EMRS sites of 2% will further be subject to maximum downtime of any item of 6 days at a stretch at any instance. In case the same exceeds six (6) days at a stretch then penalty clause of this tender may be enforced. The same penalty clause may also be enforced in case the downtime exceeds the permissible total downtime as stated above in this clause.
- e. In case the item is non-operational/ non-functional for reasons not attributable to successful bidder then communication from the bidder to the user with copy to

ERNET India specifying the reason for not able to make site operational and requesting ERNET India for non-consideration of down time till the time that reason persist would be required for excluding this period for calculation of down time penalty.

16. SLA Penalties

- i) Payments to the Bidder shall be linked to the compliance with the SLA metrics. If the Bidder/Contractor fails to adhere the terms & conditions of the contract and ERNET deducts Liquidated Damages and/or SLA penalties for the same; then in such a case, ERNET India will charge GST over and above the Liquidated Damages and/or SLA penalties, as the case may be; and same shall be recovered from the Bidder/Contractor. This may vary depending on the position of law on the date when such deduction is made.
- ii) ERNET India may deduct Rs. 1000/- from the due payments and/or recover from Bank Guarantee as the case may be for every 1 day of down time/ non-functionality of every supplied item at EMRS site beyond permitted time in SLA. This downtime shall be calculated over and above the total permitted downtime as per SLA.
- iii) The down time shall start from the date & time of reporting of fault to the bidder (at its given email id or phone number) by ERNET India or by the EMRS site.
- iv) In any case, if the supplied item (s) is not made operational/ functional within 10 days from the time of reporting of fault to the bidder by ERNET India or by the EMRS site, the Performance Security submitted by the bidder to ERNET India may be invoked/encashed, which is at the full discretion of ERNET India. Any payments (payable to bidder) shall not be paid too & will be adjusted as penalty. This may be deemed to be an event of default of contract and ERNET India may terminate the purchase order/contract along with debarring / back listing of bidder for at least one year for further dealing with ERNET India and this will be at the full discretion of ERNET India. Further in such a case, ERNET India may proceed to get the work done from any other vendor/firm and also recover the additional cost incurred for getting the scope of work done from the due payments and/or performance security available with ERNET India.

If for any reason, contract is not terminated by ERNET India, then penalty @ Rs. 1000 per day per item will be imposed beyond the permitted period; till the time problem is resolved or contract is terminated; in such a case, maximum limit of 10% of PO value towards penalty will not be applicable.

17. WARRANTY

- a) All warranties shall be on-site comprehensive of all supplied items (including its all accessories, software, cables, etc) for a minimum period of one year from the date of acceptance of last site in a batch of 25 EMRS sites.

(Example: If work of supply has been done and completed (meeting tender terms) at 25 EMRS sites at different dates, then the warranty of all these 25 sites will start from the date of acceptance of last site)

(Note: In case total EMRS sites (for which purchase order is awarded) are not in exact multiple of 25, then last batch of EMRS sites will be 25 + remaining EMRS sites for determining the start date of warranty (Example, if PO awarded is for 127 EMRS sites, then last batch will be 27 EMRS sites for determining the start date of warranty). In case of variation of number of sites in a batch due to reasons not attributable to the contractor then ERNET India reserves the right to decide the batch size less than 25.)

- b) Warranty shall include free maintenance of the whole item supplied including free replacement of faulty item /parts free software upgrades/ updates/ renewals/ replacement of batteries at site.
- c) For successful completion of warranty period of all supplied items at EMRS site (s), its certificate duly signed by authorized official of EMRS site shall be submitted by the bidder to ERNET India.

18. PERIODIC REVIEWS

During the contract period/ PO period, periodic review of the progress of the awarded work shall be done at least on weekly basis till its successful completion at ERNET India Hq, New Delhi. During this review, bidder shall inform the progress of the awarded work to complete the work.

19. PAYMENT TERMS

i) For Items (i.e. DIB, UPS, Access Point, Electrical work and LAN work):

Payment will be released after the delivery, installation, integration, commissioning, and acceptance of all the ordered items at site locations with their full functionality and commissioning of Internet link at the site locations.

Payment in a batch of 25 site locations will be made. The last batch size shall be based on methodology as mentioned above under Warranty clause. Further, the 95 % payment shall be made by ERNET India after satisfactory completion of work and its acceptance at sites in a batch as mentioned. The remaining 5% payment shall be made after completion of warranty period successfully. However, 100% payment may be considered by ERNET India after satisfactory completion of work and its acceptance at sites in a batch as mentioned, subject to the submission Bank Guarantee of 5% of PO / Contract value, valid for the period of warranty period plus 3 months of claim period (also this Bank Guarantee should be extended by the bidder itself to cover the warranty period& claim period, else same is liable for its forfeiture) to ERNET India (the format of this Bank Guarantee will be provided by ERNET India, if required).

BG submitted for claiming 5% payment will be released subject to successful completion of warranty work of purchase order.

ii) For Field Engineers:

Payment will be released after successful completion of 3 months of their tenure period at site locations. Payment in a batch of 25 site locations will be made. The last batch size shall be based on methodology as mentioned above for payment. Payment to the tune of 100 % shall be made in batch as mentioned.

Following will also be applicable in respect of payment terms:

- i) No claim for interest will be entertained by ERNET India in respect of any payment which will be held with ERNET India due to dispute between ERNET India and bidder or due to administrative delay for the reasons beyond the control of ERNET India. All taxes as per rules applicable by Govt. of India from time to time will be deducted from all payments made by ERNET India. Payments to the bidder shall be made through EFT only. The bidder shall provide necessary information, documents for receipt of payment through EFT. Payment will be made after deductions of all penalties, if any.
- ii) Keeping in view the fact that project is sponsored by Central Govt. Ministries; therefore if bidder fails to complete the work within stipulated/extended timelines or fails to claim the due payment within 1 month and funds gets lapsed/needs to be remitted back due to administrative reasons; then in such a case contractor may lose its claim to demand the payment at a later date.
- iii) Submission of following documents at the time of claiming payment:
 - Original GST compliant invoice in duplicate containing GST number of ERNET India (07AAATE0202A2ZS).
 - Duly signed & stamped acceptance report from respective sites.
 - Acknowledgement from site regarding submission of detailed diagram/drawings & documentation of the project to the respective site.
 - Photograph of tagging done as per clause B-8 of this section.
 - A letter containing details w.r.t date of acceptance, start of warranty, date of deputation of field engineer, date of imparting of 2 days training, helpdesk number & email, etc.
 - Any other document as specified in the tender document and/or demanded by ERNET India.
- iv) All Taxes as per rules applicable by Govt. of India from time to time will be deducted from all payments made by ERNET India.
- v) Payment will be made after all deductions (SLA Penalty, TDS, GSTetc).

20. Indemnity

The selected bidder shall indemnify the ERNET India, End-users, departments against all third party claims of infringement of patent, trademark, copyright or industrial design rights arising from the use of the supplied items and related services or any part thereof. ERNET India, End-users/ departments shall also stand indemnified from any claims that

the bidder's manpower may opt to have towards the discharge of their duties in the fulfillment of the purchase orders. ERNET India/End-users/ departments also stand indemnified from any compensation arising out of accidental loss of life or injury sustained by the bidder's manpower while discharging their duty towards fulfillment of the contract/ purchase orders. The bidder shall be solely responsible for any damage, loss or injury which may occur to any property or to any person by or arising out of the execution of the works or temporary works or in carrying out of the contract otherwise than due to the matters referred to in this agreement hereinbefore. The bidder would ensure for observance of all labor and other laws applicable in the matter and shall indemnify the ERNET India, end users/ its customers against the effect of non-observance of any such laws.

21. Liquidated Damages:

- (i) The original Delivery Period may be re-scheduled by the ERNET India without any Liquidated damages if such reschedule is warranted due to Force Majeure conditions and also on the ground/reasons of delay attributable to the ERNET India. In all other cases, even if any extension is given, the same shall attract LD as given in below sub clause; unless communication by ERNET India granting extension specifies otherwise.
- (i) Liquidated Damages (LD): If the Contractor fails to complete delivery, installation, testing, commissioning, integration, training, acceptance etc. of all the specified items, services, etc. as per the timelines specified in the contract/ tender, then in such a case ERNET India would be entitled to impose the Liquidated Damages for the delay @ 1% of the total value of all items, services, etc for non-commissioned/ non-accepted sites per week or part of the week of delayed period. Liquidated Damages shall not exceed 10% of the respective PO value. In case, delay beyond 10 weeks, ERNET India may initiate termination for default and take remedial action(s).

The amount towards Liquidated Damage would be recovered from the performance security as required and/or the amounts due to bidder (s). The LD will be imposed only in case the delay is attributable to the bidder(s).

- (ii) ERNET India will serve a notice duly accompanied by a preliminary calculation sheet to the contractor against whom levy of LD is proposed. In case the contractor is not satisfied/ agree with
 - (a) the reason/grounds for which levying of LD is proposed and
 - or
 - (b) method of calculation of amount of LD.

then Contractor may submit a representation to ERNET India within the stipulated timeline (as indicated in the notice i.e. 15 days) clearly mentioning his claims, ground of such claims etc. along with all the documents (self-certified) supporting his claims. The decision of competent authority of ERNET India shall be final and binding in this matter.

- (iii) Waiver from LD may be considered only if the contractor submits a written representation to ERNET India within the stipulated time (as indicated in the notice i.e. 15 days) on receipt of such notice of imposition of LD issued by ERNET India. Decision of ERNET India in the matter shall be final and binding.

22. Force majeure

1. ERNET India may grant an extension of time limit set for the completion of the work in case the timely completion of the work is delayed by force majeure beyond the bidder's control, subject to what is stated in the following sub paragraphs and the procedures detailed therein are being followed. Force majeure is defined as an event of effect that cannot reasonably be anticipated such as acts of God (like earthquakes, floods, tsunami, etc.), the direct and indirect consequences of wars (declared or undeclared), national emergencies, epidemics, quarantine restrictions, civil commotions, strikes (only those strikes which exceed a duration of ten continuous days). The successful Bidder's right to an extension of the time limit for completion of the work in above mentioned cases, is subject to the following procedures:
 - a. That within 15 days after the occurrence of a case of force majeure but before the expiry of the stipulated date of completion, the bidder informs ERNET India in writing that the bidder considers themselves entitled to an extension of the time limit.
 - b. That the successful bidder produces evidence of the date of occurrence and the duration of the force majeure in an adequate manner by means of documents drawn up by responsible authorities.
2. Apart from the extension of the time limit, force majeure does not entitle the successful bidder to any relaxation or to any compensation of damage or loss suffered.

23. Termination for default

1. Default is said to have occurred
 - a. If the bidder fails to deliver any or all of the items or work within the time period(s) specified in the purchase order, any extension thereof granted by ERNET India.
 - b. If the bidder fails to perform any other obligation(s) under the tender, Purchase Order (PO).
2. If the bidder, in either of the above circumstances, does not take remedial steps within a period of 15 days after receipt of the default notice from ERNET India (or takes longer period in spite of what ERNET India may authorize in writing), ERNET India may terminate the purchase order in whole or in part. In addition to above, ERNET India may at its discretion also take the following actions:

ERNET India may procure, upon such terms and in such manner, as it deems appropriate, items similar to the undelivered items and the defaulting bidder shall be liable to compensate ERNET India for any extra expenditure involved towards items

to complete the scope of work in totality and 20% of the total value of purchase order as cancellation charges through invocation of PBG and/or from any due payment, etc to the bidder.

3. ERNET India may at its discretion terminate the purchase order by giving 15 days' notice to the bidder, without any compensation to the bidder, if the bidder becomes bankrupt or otherwise insolvent.

24. Arbitration

1. Incase any dispute or difference arises out of or in connection with or the carrying out of works (whether during the progress of the works or after their completion & whether before or after the termination, abandonments or breach of contract) except as any of the accepted matters, provided hereunder, the parties hereto, shall first endeavour to settle such disputes of differences amicably.
2. If both the parties fail to reach such amicable settlement, then either party (The Purchaser or Bidder) may (within 20 days of such failure) give a written notice to the other party requiring that all matter in dispute or difference be arbitrated upon. Such written notice shall specify the matters which are in difference or differences of which such written notice has been given and no other shall be reoffered to the arbitration of a single arbitrator, to be appointed by both the parties or in case of disagreement as to the appointment of a single arbitrator, to that of two arbitrators, one to be appointed by each party or incase of said arbitrators not agreeing then, to the umpire to be appointed by the arbitrators in writing before entering upon the references. Provisions of Indian Arbitration & Conciliations Act, 1996 or any statutory modification or reenactment thereof and rules framed there under from time to time shall apply to such arbitration.
3. Venue of arbitration shall be New Delhi.
4. The arbitrator or arbitrators appointed under this Article shall have the power to extend the time to make the award with the consent of parties.
5. Pending reference to arbitration, the parties shall make all endeavors to complete the work in all respect. The disputes, if any, will finally be settled in the arbitration.
6. Upon every or any such references to the arbitration, as provided herein; the cost of and incidental to the reference and Award respectively, shall at the discretion of the arbitrator, or the umpire, as case may be.
7. The award of arbitrator or arbitrators, as the case may be, shall be final and binding on the parties. It is agreed that the bidder shall not delay the carrying out of the works by reason of any such matter, question or dispute being referred to arbitration, but shall proceed with the works with all due diligence. The Purchaser and the Bidder hereby also agree that arbitration under this clause shall be the condition precedent to any right of action under the contract except for as provided for in the Tender.

25. Applicable Law

1. The bidder shall be governed by the laws and procedures established by Govt. of India, within the framework of applicable legislation and enactment made from time to time concerning such commercial dealings, processing.
2. All disputes in this connection shall be settled in Delhi jurisdiction only.
3. ERNET India reserves the right to cancel this tender and/or modify the requirement without assigning any reasons. ERNET India will not be under obligation to give clarifications for doing the aforementioned.
4. ERNET India also reserves the right to modify, relax any of the terms & conditions of the tender.
5. ERNET India, without assigning any further reason can reject any bid(s), tender, in which any prescribed condition(s) is/are found incomplete in any respect.
6. ERNET India also reserves the right to award Purchase Order, Works, Supply order on quality, technical basis, which depends on quality, capability of the system and infrastructure of the bidder. The bidder(s) are, therefore, directed to submit the bid carefully along with complete technical features of the products, systems as well as other documents required to access the capability of the bidder.

26. Damage to person and property

The bidder shall (except, if and so far as this agreement provides otherwise), indemnify and keep indemnified ERNET India & it's users against all losses and claims for injuries or damage to any person or property arising out of or in consequence of the works by them and against all claims demands, proceedings, damages, loss charges and excesses whatsoever, in respect of or in relation thereof.

27. Technical specifications of DIB, UPS, AP, EW, NW and Field Engineers are given below:

i) **Digital Interactive Board (DIB)**

S. No.	Required Specifications		
1.	Panel	Screen Size	Minimum 65 inches
		Panel Technology	Display type: LED
		Contrast Ratio	1000:1 and above
		Native Resolution	Minimum 3840 x 2160 (4K)
		Brightness	Minimum 330 cd/m ²
		Viewing Angle (H x V)	Wide angle 176 x 176
		Response Time	Not more than 12 ms
		Surface Treatment	Hard surface, Anti scratch & Anti-glare treatment of the front polarizer or same
		Lifetime (Typ.)	30,000 Hrs
		Duty Cycle	Minimum 16 x 7
		Orientation	Landscape
		Aspect Ratio	16:09
2.	Connectivity	Input	Minimum requirement: HDMI Nos.2, USB (Type 2.0 or Type 3.0) Nos.1
		Output	Audio Out
3.	Special features	File Play with USB, Internal Memory (RAM) 2GB, 8 GB storage	
		Built-in RJ45 LAN, Wi-Fi Built-in (802.11n/b/g/ac combo, dual band), Built-in Speaker (10W+10W), Whiteboard interactive usage facility	
		Casting support software, Inbuilt OS	
4.	Environmental conditions	Operation Temperature	0°C to 40°C
		Operation Humidity	10% to 80%
5.	Power	Power Supply	100 to 240V AC, 50/60Hz
6.	Standard (Certification)	Safety	UL/cUL, CB/CE, BIS, ROHS,
		EMC	FCC
7.	Application	Browser, PDF Viewer, Media player with standard codec, factory resetting.	
		Facility to connect with Android device through Cast or any other similar technology.	
8.	Basic accessories	Remote Controller (optional), Power Cord, QSG, Stylus minimum Nos.2.	
		Wall mounting brackets/kit to be Provided	
9.	Touch	Touch Type	IR/Inglass/Incell/Capacitive
		Scan Time	10 ms
		Protection Glass Thickness	Anti-glare protection glass to the panel
10.	Operating System	Operating System Support	Android/Linux/open source based

11.	Warranty	The entire system/ item will be covered under warranty.
12.	Embedded Interactive White Board Software	PC Less Interactive White Board mode feature for teaching should be available, Content Management system & application to support Writing, drawing, Eraser, Screen Capture, video player, Storage, File and folder manager, storage Management, Recording/Print/ E-mail
13.	Interactive Features	Writing, Pen, Eraser, Save, Screen Capture, Storage, etc. should be available
14.	Hardware	Quad processor min 1.0 GHz,
15.	Miscellaneous	Fixing and setting up of Digital Interactive Board with wall mounting Kit.

ii) **UPS (Uninterrupted Power Supply)**

REQUIRED SPECIFICATIONS		
S.No	Description	Values
1	Rating in KVA	1 KVA
2	Technology	MOSFET-PWM
3	Type of battery	SMF-VRLA confirming to JISC-8702 Pt 1,2 &3
4	Rated Output (Volt)	Single Phase Quasi-Sin-wave 230 V AC, 50 Hz
5	Degree of protection	IP 20
6	Inverter Efficiency (%)	> / = 60%
7	Warranty for the battery	Battery will also be covered under warranty.
8	Warranty for Line Interactive UPS	Entire UPS shall be covered under warranty
9	AC out put sockets through inverter	Yes, 4 or above
10	Overload Time (Minutes)	> / = 5 minutes
11	Load power factor	> / = 0.6
12	Variation in AVR output in AC mode (%) AVR (Voltage regulation) output voltage in AC Mode	230 Volts +/-15%, 50 +/-3 Hz
13	Type of enclosure	ABS
14	Total harmonic distortion (%)	< / = 40%
15	Input (Volt)	Single phase sinewave(160-280v)
16	Switching over time (Mili sec)	Maximum 10 milli seconds
17	Overload Time (Minutes)	> / = 10 minutes
18	Load power factor	> / = 0.6
19	Variation in AVR output in AC mode (%) AVR (Voltage regulation) output voltage in AC Mode	230 Volts +/-9%, 50 +/-3 Hz
20	Overload (%)	> / = 10%
21	Variation in output voltage in battery mode (%) (UPS output voltage in battery mode)	230 Volts +/- 10%
22	Variation on output frequency in battery mode (Hz)	< / = 0.5

iii) **Access Point**

Required Specifications		
S.No	Description	Values
1	Wireless Speed	Wireless Speed – Up to 2 SSID on 2.4 GHz & 5GHz (combined) (01 SSID on each band) 1200 Mbps (2.4G + 5G)
2	SDRAM	Min 64 MB or higher
3	Flash	Min 8 MB or higher
4	Antenna Type	External Fixed Antenna (2x2: 2.4 Ghz + 2x2: 5 Ghz)
5	WAN	Minimum 1(10/100/1000)
6	LAN	Minimum 4 (10/100/1000)
7	USB 2.0/3.0	USB 2.0/3.0 - USB 3.0 / USB 2.0
8	Static IP	Yes
9	Dynamic IP (DHCP)	Yes
10	PPPoE	Yes
11	L2TP	Yes
12	PPTP	Yes
13	Static IPv6	Yes
14	PPPoE (IPv6 over PPPoE)	Yes
15	WPS (Wi-Fi Protect Setup)	Yes (PIN/Button)
16	WPA-PSK (Personal)	Yes
17	WPA2-PSK (Personal)	Yes
18	Guest Zone	Yes
19	MIMO	Yes
20	Wi-Fi	Yes
21	VPN	Yes
22	USB Sharing (FTP)	Yes
23	USB Sharing (SAMBAA)	Yes

iv) **Electrical Work**

S. No	Requirement Description
1	Installation of eight UPS shall be done with accurate and clean power wiring& power point required at site up to 20 mtrs . Installation of 08 Nos. of Digital Interactive Board, 4 Nos of Access Points and any other item supplied by the bidder at each EMRS site shall be done with required electrical wiring, socket, switch, connector, power point, etc.

v) **Passive Work for integration of Internet& Intranet connectivity for items(PN)**

S. No	Requirement Description
1	Passive Work for integration of Internet & Intranet connectivity for items shall be setup at each EMRS site. It shall be quality passive work at each EMRS with all cabling, accessories, etc to network &integrate eight (8) Digital Interactive Board, Four (4) Access Points and Internet Connectivity established/ provided by BSNL for Internet & Intranet access at each Digital Interactive Board and Wi-Fi access in the smart classrooms. It will include required CAT 6 cables, I/O boxes, Switch, Casing, Capping, RJ 35 connectors,

	miscellaneous items, accessories, etc. All supplied items, accessories, etc shall be ISO/BIS certified.
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vi)

Field Engineer

S.No	Requirement Description
1	Working hours: 8 hours per day and for six days in a week.
2	Qualification: Three Year Diploma or higher qualification in Electronics/ Computer/ Information Technology or relevant branch with at least one year experience. Experience: Having good knowledge of operations and maintaining of items supplied by the bidder under the scope of this tender. .
3.	Role: Shall operate and maintain all the supplied items at EMRS site. Handholding, training to the teachers/ officials of EMRS site for the smooth operations, maintenance, management and use of supplied & integrated items & services. Any other work as specified in the tender for field engineer.

28. The tentative list of 127 EMRS site is as:

S. No.	State	Name of the School	S. No.	State	Name of the School
1	Andhra Pradesh	EMRS Kandriga	65	Madhya Pradesh	EMRS (PTG) Indore
2	Andhra Pradesh	EMRS Y Ramavaram	66	Madhya Pradesh	EMRS (PTG) Jabalpur
3	Andhra Pradesh	EMRS Kodavalur	67	Madhya Pradesh	EMRS Ukwa
4	Andhra Pradesh	EMRS GK Veedhi	68	Madhya Pradesh	EMRS Narainala
5	Andhra Pradesh	EMRS Maredumilli	69	Madhya Pradesh	EMRS Sendhwa
6	Andhra Pradesh	EMRS Ozili	70	Madhya Pradesh	EMRS Budhni
7	Arunachal Pradesh	EMRS Bana Camp	71	Madhya Pradesh	EMRS Mandla
8	Chhattisgarh	EMRS Besoli	72	Maharashtra	EMRS Shahstrakund
9	Chhattisgarh	EMRS Gariyaband	73	Maharashtra	EMRS Devada
10	Chhattisgarh	EMRS Taregaon	74	Maharashtra	EMRS Peth Road
11	Chhattisgarh	EMRS Chheribeda	75	Maharashtra	EMRS Kambalgaon
12	Chhattisgarh	EMRS Pendri	76	Maharashtra	EMRS Nandurbar
13	Chhattisgarh	EMRS Sukma	77	Maharashtra	EMRS Maveshi
14	Chhattisgarh	EMRS Chhuri	78	Manipur	EMRS Moreh
15	Chhattisgarh	EMRS Pondidih	79	Mizoram	EMRS Lunglei
16	Chhattisgarh	EMRS Bandhwa Lormi	80	Mizoram	EMRS Serchhip
17	Chhattisgarh	EMRS Paladikhurd	81	Mizoram	EMRS Ngopa
18	Chhattisgarh	EMRS Chote Mudpar	82	Nagaland	EMRS Tuensang
19	Chhattisgarh	EMRS Katekalyan	83	Nagaland	EMRS Tizit
20	Chhattisgarh	EMRS Sanna	84	Nagaland	EMRS Diphupar
21	Chhattisgarh	EMRS Mainpat	85	Odisha	EMRS Bangripasi
22	Chhattisgarh	EMRS Bhairamgarh	86	Odisha	EMRS Karanjia
23	Chhattisgarh	EMRS Sonakhan	87	Odisha	EMRS Bhawanipur
24	Gujarat	EMRS Lakhadiya	88	Odisha	EMRS Mahasingi
25	Gujarat	EMRS Shamalaji - I	89	Odisha	EMRS Hirli
26	Gujarat	EMRS Ahwa	90	Odisha	EMRS Laing
27	Gujarat	EMRS Pardi	91	Odisha	EMRS Nuapada
28	Gujarat	EMRS Kaparada	92	Rajasthan	EMRS Kushalgarh
29	Gujarat	EMRS Ambaji	93	Rajasthan	EMRS Hanotiya
30	Gujarat	EMRS Gora (Nandod)	94	Rajasthan	EMRS Simalwara
31	Gujarat	EMRS Shamalaji 2	95	Rajasthan	EMRS Kherwara
32	Gujarat	EMRS Waghodia 2	96	Rajasthan	EMRS Mallana
33	Gujarat	EMRS Jagana	97	Rajasthan	EMRS Padola
34	Gujarat	EMRS Kadana	98	Rajasthan	EMRS Biharipura
35	Gujarat	EMRS Ukai	99	Rajasthan	EMRS Ranoli
36	Jharkhand	EMRS Salagadih	100	Rajasthan	EMRS Barnala
37	Jharkhand	EMRS Torsinduri	101	Rajasthan	EMRS Patan
38	Jharkhand	EMRS Tasria	102	Rajasthan	EMRS Sundrav
39	Jharkhand	EMRS Kathijoria	103	Rajasthan	EMRS Gogunda
40	Jharkhand	EMRS Bhognadih	104	Rajasthan	EMRS Kotra
41	Jharkhand	EMRS Basia	105	Rajasthan	EMRS Niwai
42	Jharkhand	EMRS Kujra	106	Sikkim	EMRS Parkha
43	Karnataka	EMRS Tavaga	107	Tamil Nadu	EMRS Abinavam
44	Karnataka	EMRS Taruve	108	Telangana	EMRS (B) Narmoor
45	Karnataka	EMRS Devarakotta	109	Telangana	EMRS (B) Balanagar
46	Karnataka	EMRS Balugodu	110	Telangana	EMRS (G) Kuravi
47	Karnataka	EMRS Sollapura	111	Telangana	EMRS (G) Yellareddypet
48	Karnataka	EMRS Managala	112	Telangana	EMRS (B) Gandhari
49	Karnataka	EMRS Kolagallu	113	Telangana	EMRS (G) Marrimadla
50	Karnataka	EMRS Gangannagaripalli	114	Telangana	EMRS (G) Seerole
51	Karnataka	EMRS Bandalli	115	Telangana	EMRS (G) Gandugulapally
52	Kerala	EMRS Pookode	116	Tripura	EMRS Khumulwng
53	Kerala	EMRS Idukki	117	Tripura	EMRS Kumarghat
54	Madhya Pradesh	EMRS Thandla Agral	118	Tripura	EMRS Rajnagar
55	Madhya Pradesh	EMRS Pali	119	Uttar Pradesh	EMRS Saunaha
56	Madhya Pradesh	EMRS Sohagpur	120	Uttar Pradesh	EMRS Bojhia
57	Madhya Pradesh	EMRS Singrauli	121	Uttarakhand	EMRS Kalshi
58	Madhya Pradesh	EMRS Barwani	122	West Bengal	EMRS Nagrakata
59	Madhya Pradesh	EMRS Shahpur	123	West Bengal	EMRS Mukutmanipur
60	Madhya Pradesh	EMRS Kukshi	124	West Bengal	EMRS Susunia
61	Madhya Pradesh	EMRS Sijhora	125	West Bengal	EMRS Raghunathpur
62	Madhya Pradesh	EMRS Sailana	126	West Bengal	EMRS Kankutia
63	Madhya Pradesh	EMRS Junnardev	127	West Bengal	EMRS Kumarsai
64	Madhya Pradesh	EMRS (PTG) Guna			

Section V: Bill of Quantity cum Price Schedule (BoQ-PS)

This BOQ-PS template must not be modified, replaced by the bidder, else the bid of prospective bidder is liable to be rejected for this tender.

(Amount in Rs.)

Sr.	Item description	Number of EMRSs	Qty. per EMRS	Total Qty.	Units of Qty	Unit Rate	Rate of GST in %	Amount of GST	Total Unit rate with GST	Total Price with GST
A	B	C	D	E (=C x D)	F	G	H	I	J (= G + I)	K (= J x E)
1	Digital Interactive Board (DIB)	160	8	1,280	Nos.					
2	UPS	160	8	1,280	Nos.					
3	Access Point (AP)	160	4	640	Nos.					
4	Electrical Work (EW)	160	1	160	Set					
5	Passive Work for integration of Internet & Intranet connectivity for items (PW)	160	1	160	Set					
6	Field Engineer (FE)	160	1	160	3 Months					
	Total Price of all items from Sr. 1 to 6 (Bid Value for Evaluating financial bids)									

Note:

- All prices should be in Indian Rupees(INR) only.
- All the prices should be quoted in the format as above provided by ERNET India failing which the bid may be rejected. Also any conditional Price Bid may be rejected.
- Above BOQ-PS mentioned is for evaluating L1 bidder.
- All terms and conditions of Tender Document shall be applicable with above BoQ-PS / Financial Bid.
- Bidder should quote a particular item of only one make and model.
- All quoted items should support seamless integration and inter-operability among them for their full functionality.
- For Field Engineer (FE) bidder is required to quote unit rate for 3 months period.

Section VI: Eligibility & Qualification Criteria

1. The bidder and 'OEM of the quoted items' shall meet the following Qualification criteria:

S. No.	Criteria	Documents to be submitted
1.	Non-MSE and Non-Start up: The Bidder should be a registered company in India under Companies Act 1956 as amended from time to time, or partnership registered under the India Partnership Act 1932 / Limited Liability Partnership (LLP) registered under LLP Act, 2008 or a Society constituted under the Societies Registration Act 1860 with their registered office in India and should have been in operation for at least four years as on last date of submission of bid. MSE and Startup: Bidders, who are registered as MSE and/or Startup, should have their registered office in India and should have been in operation for at least three years as on last date of submission of bid.	1. Copy of the Certificate of Registration/ Incorporation should be enclosed. 2. In case of MSE and startup, also copy of relevant Certificate confirming the category of items & services as per the requirements of tender should be enclosed.
2.	The Bidder must be the authorized by the OEM of quoted items. Bidder should quote a particular item of only one make and model in this tender.	Authorization Certificate from Original Equipment Manufacturer of Digital Interactive Board (DIB), UPS and Access Point (AP) to the bidder
3.	Non-MSE and Non-Startup: The Bidder should have executed project for supply and installation / commissioning of same or similar category items during preceding 3 financial years (i.e. current year and three previous financial years) as on last date of submission of bid, as per following criteria: (i) Single order of at least 35% (Rs. 7.50 Cr) of estimated bid value; or (ii) Two orders of at least 20% (Rs. 4.20 Cr) each of estimated bid value; or (iii) Three orders of at least 15% (Rs. 3.20 Cr) each of estimated bid value. Satisfactory Performance certificate issued by respective Buyer Organization for the above Orders should be uploaded with bid.	Copy of appropriate proof should be enclosed for all points.

	MSE and Startup: The Bidder registered under MSE / Startup should have executed/done the work as per the details given below: (i) Single order of at least (Rs. 3.75Cr) of estimated bid value; or (ii) Two orders of at least (Rs. 2.10Cr) each of estimated bid value; or (iii) Three orders of at least (Rs. 1.60 Cr) each of estimated bid value. Satisfactory Performance certificate issued by respective Buyer Organization for the above Orders should be uploaded with bid.	
4.	OEM of Digital Interactive Board (DIB) should have supplied at least 1000 units of Digital Interactive Board of 55" screen size or higher in last two years in India up to the last date of submission of bid.	Copy of appropriate proof should be enclosed for all points.
5.	The items being quoted by the bidder should not have been declared as at "End-of-Sale" by the respective bidder, OEM, manufacturer before their installation for the work under this tender and "End-of-Support" by the respective bidder, OEM, manufacturer up to at least three years from the date of installation for the work under this tender.	Undertaking from the OEM on letter head
6.	Non-MSE & non-Startup: Bidder should have average audited annual turnover of Rs. 20 Crore or more; in last three financial years (i.e. FY 2019-20, FY 2020-21 and FY 2021-22), .	Certificate from a practicing Chartered Account giving year wise turnover & their average, Also, attested audited copies of the bidders 'annual turnover' of these financial years shall be submitted.
7.	The Bidder should have Positive Net worth as on 31.03.2022.	Certificate from a practicing Chartered Account confirming the net worth as on 31.3.2022 should be submitted.
8.	The OEM of Digital Interactive Board should have their Authorized Service Centers within a radius of 500 Kms from the location of EMRS site (s) or in the state where EMRS site(s) are located (tentative list of EMRS sites is given in	A confirmation in this regard on the letter head of the OEM is to be submitted.

	the tender) to ensure warranty services.	
9.	Bidder should have their own qualified engineers, staff, office, etc to execute/mange the work in conformity with the SLA as defined in this tender document. Proper telephone number, email should be provided for contacting the bidder in respect of work execution/management as mentioned in the tender.	Documentary proof along with undertaking to this effect should be submitted. Details related to Phone number & email must be submitted.

The bidder shall submit the supporting details and Form 6 (Qualification Criteria) and Form 7 (Experience Statement) with all supporting documents.

2. Bidder should also meet the following criteria as on the date of their bid submission and should continue to meet these, till the award of the contract. Bidder shall be required to declare fulfillment of Eligibility Criteria in Form 3 (Eligibility Declarations).

A) The bidder must:

- i) Not be insolvent, not have its affairs administered by a court or a judicial officer, not have its business activities suspended and must not be the subject of legal proceedings for any of aforesaid reasons.

Not stand declared ineligible/ suspended/ blacklisted/ banned/ debarred by Government from participation in its Tender Processes;

- ii) Not be convicted (within three years preceding the last date of bid submission) or stand declared ineligible/ suspended/ blacklisted/ banned/ debarred by appropriate agencies of Government from participation in Tender Processes of all of its entities, for:

- a) offences involving moral turpitude in business dealings under the Prevention of Corruption Act, 1988 or any other law; and/or
- b) offences under the Indian Penal Code or any other law for causing any loss of life/ limbs/ property or endangering Public Health during the execution of a public procurement contract and/ or
- c) suspected to be or of doubtful loyalty to the Country or a National Security risk as determined by appropriate agencies of the Government of India.

- iii) Not have changed its name or created a new “Allied Firm”, consequent to having declared ineligible/ suspended/ blacklisted/ banned/ debarred as above.

- iv) Not have a conflict of interest, which substantially affects fair competition. The prices quoted should be competitive and without adopting any unfair/ unethical/ anti-competitive means. No attempt should be made to induce any other bidder

to submit or not to submit an offer for restricting competition. To determine whether there has been an occurrence of act of conflict of interest, the decision by the Competent Authority, ERNET India shall be final and binding.

- B) Bidder(s) shall go through F.No.6/18/2019 – PPD dated 23rd July 2020 issued by Department of Public Procurement, Ministry of Finance, Govt. of India and declaration with regard to the same shall be given in Form 3 (Eligibility Declaration).<https://doe.gov.in/sites/default/files/OM%20dated%2023.07.2020.pdf>

Section VII: FORMS/ FORMATS

Form 1: Bid Form (Covering Letter)

(To be submitted as part of Technical bid, along with supporting documents)
(On Bidder's Letter-head)

To

Registrar & CPO
ERNET India, 5th Floor,
Block-I, A Wing, DMRC IT Park,
Shastri Park, Delhi-110053
Ref: Your Tender Document No. Tender No./xxxx;

Sir/ Madam,

Having examined the abovementioned Tender Document, we, the undersigned, hereby submit, upload our Technical and Financial bid (BoQ cum Price Schedule) for the **“Supply of Intelligent Educational ICT Infrastructure at Eklavya Model Residential Schools (EMRSs)”** meeting all the terms & conditions mentioned in the tender document through Govt. e-Marketplace (GeM) –reg.

(Please tick appropriate boxes or strike out sentences/ phrases not applicable to you)

a. Our Credentials

We are submitting this bid on our behalf, registered in India under the Indian Companies Act 1956/2013 as amended. Our company law and taxation regulatory requirements and authorization for signatories and related documents are submitted in Form (Bidder Information).

b. Our Eligibility and Qualifications to participate

We comply with all the eligibility criteria stipulated in this Tender Document, and the relevant declarations are made along with documents in the given Forms. We fully meet the eligibility & qualification criteria stipulated in this Tender Document, and the relevant details are submitted along with documents in Form: 'Eligibility & Qualification Criteria – Compliance'.

c. Our Bid to supply of Services

We offer to supply items and services of requisite specification and within Delivery Schedules in conformity with the Tender Document. The relevant details are submitted in the Form: 'Bill of Quantity – Compliance' and in the Form: 'Technical Specifications- Compliance'.

d. Prices

We hereby offer to perform the items and services at our lowest prices. The prices in this offer have been arrived at independently, without restricting competition, any consultation, communication, or agreement with any other bidder or competitor relating to:

- i) those prices; or
- ii) the intention to submit an offer; or
- iii) the methods or factors used to calculate the prices offered.

The prices in this offer have neither been nor shall be knowingly disclosed by us, directly or indirectly, to any other bidder or competitor before bid opening or contract award unless otherwise required by law.

e. Affirmation to terms and conditions of the Tender Document

We have understood the complete terms and conditions of the Tender Document. We accept and comply with these terms and conditions without reservations and deviations.

f. Bid Securing Declaration

We have submitted the Bid Securing Declaration (BSD, in lieu of Bid Security) in stipulated format vide Form: 'Documents Relating to Bid Security.'

g. Abiding by the Bid Validity

We agree to keep our bid valid for acceptance for a period upto **110 days from bid submission**, as required in the Tender Document and for a subsequently extended period, if any and are aware of penalties in this regard stipulated in the Tender Document in case we fail to do so.

h. Non-tempering of Downloaded Tender Document and Uploaded Scanned Copies

We confirm that we have not changed, edited the contents of the downloaded Tender Document. We realize that any such change noticed at any stage, including after the contract award, shall be liable to punitive action in this regard stipulated in the Tender Document. We also confirm that scanned copies of documents, affidavits, undertakings uploaded along with our Technical bid are valid, true, and correct to the best of our knowledge and belief. If any dispute arises related to the validity and truthfulness of such documents, affidavits, undertakings, we shall be responsible for the same. Upon accepting our Financial bid, we undertake to submit for scrutiny, on-demand by the ERNET India, originals, and self-certified copies of all such certificates, documents, affidavits, undertakings.

i. A Binding Contract

We further confirm that, if our bid is accepted, all such terms and conditions shall continue to be acceptable and applicable to the resultant contract, even though some of these documents may not be included in the contract Documents submitted by us. We do hereby undertake that, until a formal contract, purchase orders are signed or issued, this bid, together with your PO shall constitute a binding contract between us during the entire period as mentioned in the tender document with all terms and conditions.

j. Performance Guarantee and Signing the contract

We further confirm that, if our bid is accepted, we shall provide you with performance security of the required amount stipulated in the Tender Document for the due performance of the contract. We are fully aware that in the event of our failure to deposit the required security amount, failure to execute the agreement, the ERNET India has the right to avail any or all punitive actions laid down in this regard, stipulated in the Tender Document.

k. Signatories

We confirm that we are duly authorized to submit this bid and make commitments on behalf of the Bidder. Supporting documents are submitted in Form: 'Bidder Information' annexed herewith. We acknowledge that our digital/digitized signature is valid and legally binding.

l. Rights of the ERNET India to Reject bid(s)

We further understand that you are not bound to accept the lowest or any bid you may receive against your above-referred Tender Document.

.....

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of

[name & address of Bidder and seal of company]

Form 2: Bidder Information

(To be submitted as part of Technical bid along with supporting Documents)

(On Company Letter-head)

(Along with supporting documents, if any)

Bidder's Name_____

[Address and Contact Details]

Bidder's Reference No._____ Date.....

Tender Document No. Tender No./xxxx

Note: Bidder shall fill this Form by following the instructions indicated below. No alterations to its format is permitted, and no substitutions is accepted. Bidders shall enclose certified copies of the documentary proof, evidence, etc. to substantiate the corresponding statement wherever necessary and applicable. Bids shall be liable to be rejected as nonresponsive if Bidder submits any wrong or misleading information and ERNET India may invoke Bid Security Declaration.

(Please tick appropriate boxes or strike out sentences/ phrases not applicable to you)

a. Bidder particulars

- a) Name of the Company:.....
- b) Corporate Identity No. (CIN):
- c) GeM Supplier ID
- d) Place of Registration
- e) Complete Postal Address:
- f) Pin code:
- g) Telephone nos. :
- h) Mobile Nos.:
- i) Contact persons/ Designation:
- j) Email IDs:

Submit documents to demonstrate Qualification eligibility as per Qualification Criteria section. Certificate of incorporation/Registration attested by Company Secretary/ Authorized Signatory shall be provided.

b. Taxation Registrations

- a) PAN number:
- b) Type of GST Registration as per the Act (Normal Taxpayer, Composition, Casual Taxable Person, SEZ, etc.):
- c) GSTIN number:
- d) We solemnly declare that our GST rating on the GST portal/ Govt. official website is not negative/ blacklisted.

Documents to be submitted: Self-attested Copies of PAN card and GST Registration.

c. **Authorization of Person(s) signing the bid on behalf of the Bidder**

- a) Full Name: _____
- b) Designation: _____
- c) Signing as:

The person signing the bid is the constituted attorney by a resolution passed by the Board of Directors or Power of attorney given on stamp paper by authorize person.

Documents to be submitted: Power of Attorney/ Board Resolution

d. **Bidder's Authorized Representative Information**

- a) Name:
- b) Address:
- c) Telephone/ Mobilenumbers:
- d) Email Address:

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of.....

[name& address of Bidder and seal of company]

Dated.....

Place.....

Form 3: Eligibility Declarations

(To be submitted as part of Technical bid)

(On Company Letter-head)

(Along with supporting documents, if any)

Tender Document No. TenderNo./xxxx;

Bidder's Name _____

[Address and Contact Details]

Bidder's Reference No. _____ Date.....

Eligibility Declarations

(Please tick appropriate boxes or cross out any declaration not applicable to the Bidder)

We hereby confirm that we are comply with all the terms & conditions mentioned in the tender document including clauses mentioned in the NIT and ITB sections and declare that we shall provide evidence of our continued eligibility to ERNET India as may be requested:

a. **Legal Entity of Bidder:** _____

We solemnly declare that we (including our affiliates, subsidiaries, constituents):

- a) Are not insolvent, in receivership, bankrupt or being wound up, not have our affairs administered by a court or a judicial officer, not have our business activities suspended and are not the subject of legal proceedings for any of these reasons;
- b) (including our Contractors, subcontractors for any part of the contract):
 - i. Do not stand declared ineligible, blacklisted, banned, debarred by Government from participation in its Tender Processes; and/ or
 - ii. Are not convicted (within three years preceding the last date of bid submission) or stand declared ineligible, suspended, blacklisted, banned, debarred by appropriate agencies of Government of India from participation in Tender Processes of all of its entities, for offences mentioned in Tender Document in this regard. We have neither changed our name nor created a new "Allied Firm", consequent to the above disqualifications.
- c) We certify that we fulfil any other additional eligibility condition if prescribed in Tender Document.
- d) We have no conflict of interest, which substantially affects fair competition. The prices quoted are competitive and without adopting any unfair, unethical, anti-competitive means. No attempt has been made or shall be made by us to induce any other bidder to submit or not to submit an offer to restrict competition.

- e) We have gone through F.No.6/18/2019 – PPD dated 23rd July 2020 issued by Department of Public Procurement, Ministry of Finance, Govt. of India and certify as follows:

I hereby certify that the <<<<bidder's name>>>> :

(i) is not from such a country

or

(ii) is from such a country and has been registered with the Competent Authority in India which makes the bidder eligible to participate in this Tender/ RFP. [Evidence of valid registration by the Competent Authority attached.]

I hereby certify that <<<<<bidder name>>>> fulfils all requirements in this regard and is eligible to be considered.

{Strike out inapplicable clause i.e. clause (i) or (ii)}

b. Make in India Status:

Having read and understood the Public Procurement (Preference to Make in India PPP - MII) Order, 2017 (as amended and revised till date) and related notifications from the relevant Nodal Ministry/ Department, and solemnly declare the following:

a) We declare that

- There is no country whose bidders have been notified as ineligible on a reciprocal basis under this order for the offered items & services, or
- We do not belong to any Country whose bidders are notified as ineligible on a reciprocal basis under this order for the offered items and services.

Penalties for false or misleading declarations

We hereby confirm that the particulars given above are factually correct and nothing is concealed and undertake to advise any future changes to the above details. We understand that ERNET India may invoke Bid Security Declaration, if any wrong or misleading self-declaration submitted by us.

(Signature with date)

(Name and designation)

Duly authorized to sign bid for and on behalf of

.....

Dated.....

Place.....

[name& address of Bidder and seal of company]

Form 4: Bill of Quantity- Compliance

(on Company Official Letter Head)

Bidder's Name& Address _____

Bidder's Reference No. _____ Date.....

To

Registrar & CPO

ERNET India, 5th Floor,

Block-I, A Wing, DMRC IT Park,

Shastri Park, Delhi-110053

Ref: Tender Document No. Tender No./xxxx;

Subject: Bill of Quantity (BoQ) Compliance

There are no deviations (null deviations) in Bill of Quantity and conditions mentioned in Tender Document. <<M/s Bidder's Name ->> certify that our proposal includes all the items and services specified in tender document.

We understand that the requirement of items and services as briefed in Bill of Quantity cum Price Schedule (BoQ-PS) section. We confirm that we have undertaken our own assessment for complete implementation of project and accordingly we have considered extra items, services, software, applications etc. (if any) and will be provided by << M/s Bidder's Name >>>> to complete the project meeting all terms and conditions mentioned in the tender document.

"This is to certify that our proposed bid includes all the items and services mentioned in Bill of Quantity Section as well as other material and services based on self-assessment to complete the project and meets all the requirements of the tender document including but not limited to Scope of Work (including SLAs), project requirements and functional specifications, requirements, etc.

In case, any item, service, software, etc is found non-compliant at any stage during work and project implementation or after acceptance, it would be replaced with a fully compliant product, solution at no additional cost to ERNET India. In case of non-adherence of this activity, ERNET India reserves the right to cancel the contract/ purchase orders, in case these are awarded to us by ERNET India.

We shall comply with warranty, maintenance requirements as mentioned in the Tender Document with all terms of the tender. We further confirm that our technical and financial bid

is for the entire scope of work, comprising all required components and our obligations, for meeting the scope of work and tender terms & conditions.

(Signature with date) _____

(Name and designation) _____

Duly authorized to sign bid for and on behalf of

[name& address of Bidder and seal of company]

Form 5: Scope of Work - Compliance

(on Company Official Letter Head)

Bidder's Name_____

[Address and Contact Details]

Bidder's Reference No._____ Date.....

To

Registrar & CPO

ERNET India, 5th Floor,

Block-I, A Wing, DMRC IT Park,

Shastri Park, Delhi-110053

Ref: Tender Document No. Tender No./xxxx;

Subject: **Scope** of Work Compliance

There are no deviations (null deviations) in the Scope of work section mentioned in Tender Document. <<M/s----->> certify that our proposal fulfils Scope of work including terms & conditions specified in tender document.

0

We understand and comply fully the scope of work including terms & conditions mentioned in the tender document. We certify that our proposed items & services are with same or higher specifications than the required and mentioned items & services in the tender document including its all terms.

In case, any item, service, software, etc is found non-compliant at any stage during project implementation or after acceptance, it would be replaced with a fully compliant solution at no additional cost to ERNET India. In case of non-adherence of this activity, ERNET India reserves the right to cancel the contract, purchase order, etc, in case these are awarded to us by ERNET India.

We further confirm that our commercial proposal is for the entire scope of work, comprising all required items, services, components, specifications, terms & conditions and our obligations, for meeting the scope of work.

.....

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of

.....

[name& address of Bidder and seal of company]

Form 6: Eligibility & Qualification Criteria - Compliance

(on Company Official Letter Head)

Bidder's Name _____

[Address and Contact Details]

Bidder's Reference No. _____ Date.....

To

Registrar & CPO

ERNET India, 5th Floor,

Block-I, A Wing, DMRC IT Park,

Shastri Park, Delhi-110053

Ref: Tender Document No. Tender No./xxxx;

Subject: **Section- Eligibility & Qualification Criteria - Compliance**

Note to Bidders: Statements and documents to confirm conformity to Eligibility & Qualification Criteria of this tender shall be mentioned & attached herewith. You shall attach documents as required for eligibility & qualification criteria. Add additional details not covered elsewhere in your bid in this regard. Non-submission or incomplete submission of documents may lead to rejection of the bid as nonresponsive.

Sl. No.	Document Attached, duly filled, signed, and copies self-attested
1	
2	
3	
..	

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of.....

[name & address of Bidder and seal of company]

Dated.....

Place.....

Form 7: Experience Statement

Statement of completion of Project Last five Years
(on Company Official Letter Head)

Bidder's Name_____

[Address and Contact Details]

Bidder's Reference No._____ Date.....

To

Registrar & CPO
ERNET India, 5th Floor,
Block-I, A Wing, DMRC IT Park,
Shastri Park, Delhi-110053

Ref: Tender Document No. Tender No./xxxx;

Subject: **Section- Qualification Criteria - Compliance**

Note to Bidders: Fillup this Form for your past performance, experience, etc. highlighting the qualification to supply relevant items & services as specified in Qualification Criteria section of Tender Document. Statements and Documents to the Experience Statement shall be mentioned and attached herewith. Add additional details, not covered elsewhere in your bid in this regard.

Order issued by (Complete address along with contact no.)	Purchase Order No. & Date	Project detail	Start Date of Project	Completion Date of Project	Project Value

Enclosure: Relevant Document Attached.

Yours faithfully,

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of.....

[name & address of Bidder and seal of company]

Form8: Terms & Conditions- Compliance

(on Company Official Letter Head)

Bidder's Name_____

[Address and Contact Details]

Bidder's Reference No._____ Date.....

To

Registrar & CPO

ERNET India, 5th Floor,

Block-I, A Wing, DMRC IT Park,

Shastri Park, Delhi-110053

Ref: Tender Document No. Tender No./xxxx;

Subject: **Terms & Conditions- Compliance**

- 1) With reference to our Bid submitted against the above referred Tender no....., we hereby confirm that we comply with all terms, conditions and specifications of the Tender Documents read in conjunction with Amendment(s), Clarification(s) (if any) issued by ERNET India prior to last date of submission of bids and the same has been taken into consideration while submitting our bid and we declare that we have not taken any deviation in this regard.
- 2) We further confirm that any deviation, variation or additional conditions etc. or any mention, contrary to Bidding Documents and its Amendment(s), Clarification(s) (if any) as mentioned at above found anywhere in our bid, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to ERNET India.

.....

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of

.....

[name& address of Bidder and seal of company]

Form 9: Documents relating to Bid Security.

*Note: To be submitted as part of Technical bid, along with supporting documents, if any.
Bidders exempted from submission of bid security are also required to submit this.*

Bid Securing Declaration

(on Company Letter-head)

Bidder's Name _____

[Address and Contact Details]

Bidder's Reference No. _____ Date.....

To

Registrar & CPO

ERNET India, 5th Floor,

Block-I, A Wing, DMRC IT Park,

Shastri Park, Delhi-110053

Ref: Tender Document No. Tender No./xxxx;

Sir/ Madam

We, the undersigned, solemnly declare that:

We understand that according to the conditions of this Tender Document, the bid must be supported by a Bid Securing Declaration in lieu of Bid Security.

We unconditionally accept the conditions of this Bid Securing Declaration. We understand that we shall stand automatically suspended from being eligible for bidding in any tender in Procuring Organization for 2 years from the date of opening of this bid if we breach our obligation(s) under the tender conditions if we:

- a. withdraw/ amend/ impair/ derogate, in any respect, from our bid, within the bid validity; or
- b. being notified within the bid validity of the acceptance of our bid by the ERNET India, but refused to or failed to produce the original documents for scrutiny or the required Performance Security within the stipulated time under the conditions of the Tender Document.

We know that this bid-Securing Declaration shall expire if the contract is not awarded to us, upon:

- 1) receipt by us of your notification
 - (a) of cancellation of the entire tender process or rejection of all bids or
 - (b) of the name of the successful bidder or
- 2) forty-five days after the expiration of the bid validity or any extension to it.

(Signature with date)

.....

(Name and designation)

Duly authorized to sign bid for and on behalf of.....

[name & address of Bidder and seal of company]

Dated.....

Place.....

Form 10: Bank Guarantee Format for Performance Security

(To be stamped in accordance with stamp Act)

(The non-judicial stamp paper should be in the name of issuing Bank)

B.G. NO. _____

Date of issue _____

Amount (Rs.) _____

Valid upto _____

Claim Amount upto _____

To,
Registrar & CPO
ERNET India, 5th Floor,
Block-I, A Wing, DMRC IT Park,
Shastri Park, Delhi-110053

Dear Sir,

In consideration of the ERNET India, Ministry of Electronics & Information Technology (hereinafter referred as the '**Owner**', which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s. _____ (name, constitution and address) (herein referred to as the '**Contractor**', which expression shall unless repugnant to the context of meaning thereof, include its successors, administrator, executors and assigns) a Purchase Order No. _____ dated _____ valued at _____ (hereinafter referred to as Contract) and the Contractor having agreed to provide a Bank Guarantee towards Performance of the entire Contract equivalent to Rs. _____ (amount of BG) (i.e. _____ per cent of the said value of the Contract) to the Owner.

We _____ (name of the Bank) having its Registered Office at _____ and Corporate/Head Office at _____ (hereinafter referred to as the '**Bank**', which expression shall, unless repugnant to the context or meaning thereof, include the successors, administrators, executors and assigns) do hereby guarantee and undertake to pay at any time up to _____ (day/month/year including claim period) an amount not exceeding Rs. _____, within ten (10) calendar days from the date of receipt by us on first written demand by Owner; through hand delivery or registered A.D. Post or by speed post or by courier, stating that "Contractor" has failed to perform its obligations under the Contract. Aforesaid payment will be made without any demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the owner the Bank shall be conclusive and binding notwithstanding any difference between the Owner and Contractor or any dispute pending before any court, tribunal or any authority.

The Bank undertakes not to revoke this guarantee during its currency without previous consent of the Owner and further agrees that the guarantee herein contained shall continue to be enforceable till the Owner discharges this guarantee. The owner shall have the fullest liberty, without affecting in any way the liability of the Bank under this guarantee, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forebear to enforce any covenants, contained or implied, in the Contract between the Owner and the Contractor or any other course of or remedy or security available to the Owner. The Bank shall not be relieved of its obligations under these presents by any exercise by the owner or by any other matters or thing

whatsoever which under law would, but for this provision, have the affect of relieving the Bank. The Bank also agrees that the Owner at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Owner may have in relation to the Contractors liabilities.

This Guarantee can be invoked in one or more trenches and in such a case Owner will not be required to submit the original Guarantee along with submission of claim.

Notwithstanding anything mentioned herein above our liability under this guarantee is restricted to Rs. _____ and it shall remain in force up to and including _____ shall be extended from time to time for such period as may be desired by the Contractor on whose behalf this guarantee has been issued.

WITNESS	BANK
Signature_____	
Signature_____	
Name_____	Name _____
	(Bank’s Rubber Stamp)
	Seal, name & address of the Bank and address of the Branch
	Designation with Bank Stamp

Form 11: Non-Disclosure Agreement

(To be submitted on Non-Judicial Stamp Paper of Rs 100/-)

This Agreement is made as on the _____, between **ERNET India, an autonomous society under the administrative control of Ministry of Electronics and Information Technology, Government of India** called as “**ERNET India**” through its Director General which expression shall unless repugnant to the subject or the context mean and include its successors, nominees or assigns.

And

<<<**Bidder / Contractor Name**>>> called as “-----” through its ----- which expression shall unless repugnant to the subject or the context mean and include its successors, nominees or assigns.

ERNET India and <<Bidder/ContractorName>> are sometimes referred to herein individually as “Party” and collectively as “Parties”.

Tender No. “ is for the procurement of Cloud Services to Host various services (such as Web Hosting, DNS Applications etc.) offered by ERNET India to its users as per the terms mentioned in the tender document through Govt. e- Marketplace (GeM) –reg. ” and Contract no.....(hereinafter referred as “**Project**”).

ERNET India and <<Bidder / ContractorName>> have entered into a contract to deliver this project, Now, both the parties enter into this agreement and agree that information provided and available with each party in respect of this project is to be used only for the specific project purpose and parties are required to protect such confidential information from unauthorized use and disclosure.

In consideration of the other party's disclosure of such information, each party agrees as follows:

1. This Agreement will apply to all confidential and proprietary information disclosed, owned or collected by one party to the other party, including information generated under this project, which the disclosing party identifies in writing or otherwise as confidential to the receiving party (“**Confidential information**”). Information consists of certain specifications, designs, plans, drawings and /or technical information, software, data etc, and all copies and derivatives containing such information, that may be disclosed to one another for and during the purpose, which a party considers proprietary or confidential (“**Information**”). Information may be in any form or medium, tangible or intangible, and may be communicated/disclosed in writing, orally, or through visual observation or by any other means to one party (hereinafter referred to as the receiving party) by the other party (hereinafter referred to as one disclosing party). Information shall be subject to this Agreement, if it is in tangible form, only if clearly marked as proprietary or confidential as the case may be, when disclosed to the receiving party or, if not in tangible form, its proprietary nature must first be announced, and it must be reduced to writing and furnished to the receiving party.
2. ERNET India and <<Bidder/ ContractorName>> hereby agree that during and after the Agreement Period:
 - a) The receiving party shall use Information only for the Purpose, shall hold Information in

confidence using the same degree of care as it normally exercises to protect its own proprietary information, but not less than reasonable care, taking into account the nature of the Information, and shall grant access to Information only to its employees who have a need to know, but only to the extent necessary to carry out the business purpose of this project as defined, shall cause its employees, outsourced agencies, vendors, implementation partners and contract employees to comply with the provisions of this Agreement applicable to the receiving party, shall reproduce Information only to the extent essential for fulfilling the purpose, and shall prevent disclosure of information to third parties.

- b) Upon the disclosing party's request, the receiving party shall either return to the disclosing party all Information or shall certify to the disclosing party that all media containing Information have been destroyed.

3. The foregoing restrictions on each party's use or disclosure of Information shall not apply to Information that the receiving party can demonstrate which:-

- a) was independently developed by or for the receiving party without reference to the Information, or was received without restrictions; or
- b) has become generally available to the public without breach of confidentiality obligations of the receiving party; or
- c) was in the receiving party's possession without restriction or was known by the receiving party without restriction in vogue at the time of disclosure; or
- d) is the subject of a subpoena or other legal or administrative stipulated requirement demand for disclosure; provided, however that the receiving party has given the disclosing party prompt notice of such requirement for disclosure and the receiving party reasonably cooperates with the disclosing party's effort to secure and appropriate protective order; or
- e) is disclosed with the prior written consent of the disclosing party; or
- f) was in its possession or known to it by being in its use or being recorded in its files or computers or other recording media prior to receipt from the disclosing party and was not previously acquired by the receiving party from the disclosing party under an obligation of confidence; or
- g) the receiving party obtains or has available from a source other than the disclosing party without breach by the receiving party or such source of any obligation of confidentiality or non-use toward the disclosing party.

4. Each party agrees not to remove any of the other party's Confidential Information from the premises and sites of the disclosing party without the disclosing party's prior written approval. Each party agrees to exercise extreme care in protecting the confidentiality of any confidential information which is removed, only with the disclosing party's prior written approval, from the disclosing party's premises and sites. Each party agrees to comply with any and all terms and conditions the disclosing party's may impose upon any such approved removal, such as conditions that the removed confidential information and all copies must be returned by a certain date, and that no copies are to be made off of the premises.

5. Upon the disclosing party's request, the receiving party will promptly return to the disclosing party all tangible items containing or consisting of the disclosing party's confidential information and all copies thereof.

6. Each party recognizes and agrees that all of the disclosing party's confidential information is owned solely by the disclosing party (or its licensors) and that the unauthorized disclosure or use of such confidential information would cause irreparable harm and significant injury, the

degree of which may be difficult to ascertain. Accordingly, each party agrees that the disclosing party will have the right to obtain an immediate injunction enjoining any breach of this agreement, as well as the right to pursue any and all other rights and remedies available at law or in equity or may seek the intervention of Director General, ERNET India for such a breach.

7. Access to information hereunder shall not preclude an individual who has seen such information for the purpose of this agreement from working on future projects for the receiving party which relate to similar subject matters provided that such individual does not make reference to the information and does not copy the substance of the information during the confidentiality period thereafter as required by applicable law. Furthermore nothing contained herein shall be construed as imposing any restriction on the receiving party's disclosure or use of any general learning, skills or know how developed by the receiving party's personnel under this agreement, if such disclosure and use would be regarded by a person of ordinary skill in the relevant area as not constituting a disclosure or use of the information.
8. As between the parties, all information shall remain the property of the disclosing party. By disclosing information or executing this agreement, the disclosing party does not grant any license, explicitly or implicitly, under any trademark, patent, copyright, mask work protection rights, trade secret or any other intellectual property right. THE DISCLOSING PARTY DISCLAIMS ALL WARRANTIES REGARDING THE INFORMATION, INCLUDING ALL WARRANTIES WITH RESPECT TO INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS AND ALL WARRANTIES AS TO THE ACCURACY OR UTILITY OF SUCH INFORMATION. Execution of this agreement and the disclosure of information pursuant to this agreement does not constitute or imply any commitment, promise, or inducement by either party to make any purchase, or sale or to enter into any additional agreement of any kind.
9. Either party's failure to enforce any provision, right or remedy under this agreement shall not constitute a waiver of such provision, right or remedy.
10. This Agreement will be construed in, interpreted and applied in accordance with the laws of India.
11. That in case of any dispute or differences, breach & violation relating to the terms of this agreement, the said matter or dispute, difference shall be referred to Director General, ERNET India for his decision in this regard. The decision of the Director General, ERNET India will be final and binding on both the parties.
12. This Agreement constitutes the entire agreement of the parties with respect to the parties respective obligations in connection with Information disclosed hereunder and supersedes all prior oral and written agreements and discussions with respect thereto.
13. The parties can amend or modify this agreement only by a writing duly executed by their respective authorized representatives. Neither party shall assign this Agreement without first securing the other Party's written consent.
14. This Agreement will remain in effect during the currency of agreement & shall survive even after expiry of the agreement or project.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement by Their duly authorized officers or representatives.

For and on behalf of
ERNET India
Ministry of Electronics and
Information Technology,
Government of India.

For and on behalf of
<< Contractor Name >>

Name: Sh. Arun Kumar Singh
Designation: Registrar & CPO
ERNET India, Delhi

<<Authorized to sign from Contractor Name >>
Designation:
Address:

Form12: Integrity Pact

ERNET India hereinafter referred to as "ERNET"

And

-----[Bidder / Contractorparticipating in this tender] hereinafter referred to as
"The Contractor"

Preamble

ERNETIndiainvites online bids (e-tender for) for: Item (s) & Services

ERNET India values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness/transparency in its relations with its Contractor.

In order to achieve these goals, ERNET will appoint an Independent External Monitor (IEM), who will monitor the tender process and the execution of the contract for Compliance with the principles mentioned above.

Section 1- Commitments of ERNET

1. ERNET commits itself to take all measures necessary to prevent corruption and to observe the following principles:-
 - a. No employee of ERNET, personally or through family members, will in connection with the tender for, or the execution of a contract, demand, take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.
 - b. ERNET will during the tender process treat all Bidder(s) with equity and reason. ERNET will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder (s) confidential/additional information through which the Bidder(s) could obtain an advantage in relation to the process or the contract execution.
 - c. ERNET India will exclude from the process all known prejudiced persons.
2. If ERNET India obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act, or it there be a substantive suspicion in this regard, ERNET India will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions.

Section 2- Commitments of the Bidder(s)

1. The Bidder(s) commit himself to take all measures necessary to prevent corruption. The bidder commits himself to observe the following principles during his participation in the tender process and during the contract execution:
 - a. The Bidder(s) will not, directly or through any other persons or firm, offer promise or give to any of ERNET's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage or during the execution of the contract.
 - b. The Bidder(s) will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process.

- c. The Bidder(s) will not commit any offence under the relevant IPC/PC Act; further the Bidder(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by ERNET as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
 - d. The Bidder(s) of foreign origin shall disclose the name and address of the Agents/representatives in India, if any. Similarly, the bidder(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details as mentioned in the "Guidelines on Indian Agents of Foreign Suppliers" shall be disclosed by the Bidder(s). Further, as mentioned in the Guidelines all the payments made to the Indian agent/representative have to be in Indian Rupees only. Copy of the "Guidelines on Indian Agents of Foreign Suppliers" as annexed and marked as Annexure.
 - e. The Bidder(s) will, when presenting his bid, disclose any and all payments he has made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.
2. The Bidder(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3: Disqualification from tender process and exclusion from future contracts

If the Bidder(s), before award or during execution has committed a transgression through a violation of Section 2, above or in any other form such as to put his reliability or credibility in question, ERNET is entitled to disqualify the Bidder(s) from the tender process or take action as per the Government/ERNET India's procedure on banning of the business dealings/bidders, etc.

Section 4: Compensation for Damages

- a. If ERNET India has disqualified the Bidder(s) from the tender process prior to the award according to Section 3, ERNET is entitled to enforce Bid security Declaration.
- b. If ERNET India has terminated the contract according to section 3, or if ERNET is entitled to terminated the contract according to section 3, ERNET shall be entitled to demand and recover from the bidder liquidated damages of the Contract value and/or the amount equivalent to Performance Security or from any due payment to the bidder.

Section 5: Previous Transgression

- a. The Bidder declares that no previous transgressions occurred in the last three years with any other company in any country conforming to the anti-corruption approach or with any other public sector enterprise in India that could justify his exclusion from the tender process.
- b. If the bidder makes incorrect statement on this subject, he can be disqualified from the tender process for action can be taken as per the procedure mentioned in "Guidelines on Banning of business dealings".

Section 6: Equal treatment of all Bidders/Subcontractors

- a. The Bidder(s) undertake(s) to demand from all subcontractors a commitment in conformity with this Integrity Pact, and to submit it to ERNET before contract signing.
- b. ERNET India will enter into agreements with identical conditions as this one with all bidders, and subcontractors.
- c. ERNET India will disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section 7: Criminal charges against violation Bidder(s)/Sub contractor(s)

If ERNET India obtains knowledge of conduct of a Bidder, or Subcontractor, or of an employee or a representative or an associate of a Bidder, or Subcontractor which constitutes corruption, or if ERNET has substantive suspicion in this regard, ERNET will inform the same to the Chief Vigilance Officer.

Section 8: Independent External Monitor/Monitors

1. ERNET India appoints competent and credible Independent External Monitor for this Pact. The task of the Monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.
2. The Monitor is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He reports to the Director General, ERNET.
3. The Bidder(s) accepts that the Monitor has the right to access without restriction to all project documentation of ERNET including that provided by the bidder. The bidder will also grant the Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his project documentation. The same is applicable to Subcontractors. The Monitor is under contractual obligation to treat the information and documents of the Bidder(s)/Subcontractor(s) with confidentiality.
4. ERNET will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between ERNET and the bidder. The parties offer to the Monitor the option to participate in such meetings.
5. As soon as the Monitor notices, or believes to notice, a violation of this agreement, he will so inform the Management of ERNET and request the Management to discontinue or take corrective action, or to take other relevant action. The monitor can in this regard submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.
6. The Monitor will submit a written report to the Director General, ERNET within 8 to 10 weeks from the date of reference or intimation to him by ERNET and, should the occasion arise, submit proposals for correcting problematic situations.
7. Monitor shall be entitle to compensation on the same terms as being extended to / provided to Director level in the ERNET India or as decided by Director General of ERNET India.
8. If the Monitor has reported to the Director General ERNET, a substantiated suspicion of an offence under relevant IPC/PC Act, and the Director General ERNET has not, within the reasonable time taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.
9. The word 'Monitor' would include both singular and plural

Section 9 - Pact Duration

1. This pact begins when both parties have legally signed it. It expires for the bidder 10 months after the last payment under the contract or after 10 months from the expiry of Rate Contract (RC) which ever be later and for all other Bidders 12 months from the contract has been awarded.
2. If any claim is made / lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above, unless it is discharged / determined by Director General of ERNET.

Section 10 - Other provisions

1. This agreement is subject to Indian Law, Place of performance and jurisdiction is the Registered Office of ERNET, i.e. New Delhi.
2. Changes and supplements as well as termination notices need to be made in writing. Side agreements have not been made.
3. If the bidder is a partnership or a consortium, this agreement must be signed by all partners or consortium members.
4. Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.
5. Issues like Warranty/ Guarantee etc., shall be outside the purview of IEMs

(For & on behalf of ERNET)
(Office Seal)

(For & on behalf of Bidder)
(Office Seal)

Place-----

Date-----

Witness 1: (Name & Address)

Witness 2: (Name & Address)

